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INTELLECTUAL PROPERTY LAWS

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MODULE 1

1. What is the meaning of Intellectual Property?

Intellectual Property, also called IP, means the creations of the human mind. These creations can be inventions, books, songs, paintings, logos, brand names, designs, and other things that people create using their ideas and knowledge. These creations are not physical things like a chair or a car, but they are still very valuable. So, the law protects these creations so that no one can use or copy them without the permission of the person who created them. This legal protection is called Intellectual Property Rights.

There are different types of Intellectual Property, and each type protects different kinds of creations:

- ⇒ **Patents** – These protect new inventions. For example, if someone invents a new machine, they can get a patent so no one else can make or sell that machine without permission.
- ⇒ **Copyright** – This protects creative works like books, movies, music, paintings, and software. It means that only the creator has the right to copy, share, or sell their work.
- ⇒ **Trademarks** – These are symbols, words, or logos that help people recognize a brand. For example, the Nike "swoosh" or the Apple logo are trademarks.
- ⇒ **Industrial Designs** – These protect the look or shape of a product. For example, the unique shape of a bottle or the design of a piece of furniture.
- ⇒ **Geographical Indications (GIs)** – These are used for products that come from a special place and have special qualities because of that place. For example, Darjeeling tea or Basmati rice.
- ⇒ **Trade Secrets** – These are secret business information, like a recipe or a process, that gives a company an advantage. For example, the Coca-Cola recipe is a trade secret.

2. Why is Intellectual Property important?

Intellectual Property is very important because it protects the ideas and creations of people. When someone invents something new, writes a book, makes a song, or creates a brand, they put in a lot of time, effort, and knowledge. Intellectual Property gives them the right to protect their work so others cannot copy or use it without permission. This protection helps creators feel safe and confident to keep creating new things. It also helps the country grow by encouraging businesses and trade.

- ⇒ Intellectual Property gives people the motivation to be creative and come up with new ideas. When they know their work is protected, they are more likely to invent or make something new without fear of it being stolen.
- ⇒ It helps the economy grow. When people create new things, it leads to new businesses, products, and jobs. This helps the country develop and earn more money through inventions and services.
- ⇒ It encourages healthy competition. Even if one company has a patent, others try to create something different or better. This leads to new and improved products in the market.
- ⇒ It helps consumers recognize brands. Trademarks help people identify their favourite products and trust the quality. It also protects customers from fake or low-quality items.
- ⇒ It protects cultural works like books, paintings, songs, and movies. This ensures that our traditions, stories, and art are not lost and can be enjoyed by future generations.
- ⇒ It helps businesses grow by attracting investors. When a company owns strong Intellectual Property, it shows that the company has value and potential, which makes investors interested in supporting it.
- ⇒ It is also important for trade between countries. When countries have good IP laws, other countries and companies feel safe doing business with them. International organizations also support fair and equal rules for IP across the world.

3. What is the nature and what are the main characteristics of Intellectual Property Rights?

Intellectual Property Rights (IPRs) are legal rights that are given to people or companies for their creative and innovative work. These rights help protect the ideas, inventions, brands, artwork, and other creations of the mind. They allow the creator to control how their work is used, shared, or sold. Intellectual Property may not be something you can touch or see like physical objects, but it is still very valuable. These rights help encourage people to think creatively, invest time and money in research, and help the economy grow.

Nature:

- ⇒ Intellectual Property is intangible. This means it does not have a physical form. It can be an idea, a design, a song, a logo, or a new invention, but it cannot be touched like a mobile phone or a book.
- ⇒ These rights are given by law and are meant to protect the work of human creativity and intelligence.
- ⇒ The owner of the intellectual property has the right to control how it is used, copied, sold, or shared.
- ⇒ These rights are granted for a limited time only. After the time period is over, others can use the creation freely.
- ⇒ Intellectual Property Rights are territorial. This means they are only valid in the country where they are registered. If someone wants protection in another country, they need to apply separately there.

Characteristics:

- ⇒ IPRs give exclusive rights to the creator. Only the person who owns the rights, or someone they allow, can use or sell the creation.
- ⇒ They help encourage creativity and innovation because people feel safe knowing their work is protected.
- ⇒ Intellectual Property can be transferred or licensed. This means the owner can sell their rights or give others permission to use their creation in exchange for money.
- ⇒ IPRs help protect a product's or company's identity in the market. Trademarks and logos help customers trust and recognize products.
- ⇒ Legal protection is available if someone uses the intellectual property without permission. The owner can take legal steps to stop the misuse and get compensation.
- ⇒ IPRs protect cultural and artistic work. They make sure that artists, writers, and musicians can earn money from their work and that their work is respected.
- ⇒ They also help in social and economic growth. Protected ideas and inventions lead to new products, businesses, and jobs. Companies are more willing to invest in research and development when their ideas are protected.

4. What is the origin of Intellectual Property Rights?

Intellectual Property Rights (IPRs) were created to protect human creativity, innovation, and hard work. While the formal laws we use today are relatively new, the idea of giving credit or rewards for original work has been around for a long time. As societies grew and developed, it became more important to protect inventions, creative works, and trade symbols, which led to the creation of legal systems for IPRs.

- ⇒ In ancient Greece and Rome, there were early signs of recognizing and protecting creative works. Writers and artists got recognition and sometimes rewards, but there were no laws to stop others from copying their work.
- ⇒ During medieval times in Europe, craftsmen and artisans kept their methods secret to prevent others from copying them. This showed an early understanding of the importance of protecting unique skills and knowledge.
- ⇒ The invention of the printing press in the 15th century changed everything. Books and other written content could now be copied easily, and this led to concerns about people copying work without permission.
- ⇒ To solve this problem, England passed the first copyright law, the Statute of Anne, in 1710. This law gave authors the right to control how their books were printed and shared, marking the start of modern copyright protection.
- ⇒ In 1624, England passed the Statute of Monopolies, which gave inventors the right to use and make money from their inventions for a limited time. This started the idea of patent protection.
- ⇒ As trade grew, especially during the Industrial Revolution, businesses started using logos and symbols to help people recognize their goods. This led to the creation of trademark laws to protect brand names and logos.
- ⇒ In the U.S., the first trademark law was passed in 1870. One of the most famous trademarks is the Coca-Cola logo, which is still protected today.

5. How have Intellectual Property Rights developed over time?

Intellectual Property Rights have developed over the centuries to keep up with changes in society, technology, and the economy. What started as simple ideas about protecting authors and inventors has now

become a wide-reaching legal system that covers everything from books and logos to software and genetic inventions. The goal has always been to support creativity while allowing society to benefit from new ideas and products.

- ⇒ During the 18th and 19th centuries, patent systems started growing quickly. Countries like the United States and France made special laws to protect inventors. These laws gave inventors the right to control their inventions for a limited time. This encouraged more people to create new things because they knew their ideas would be safe and they could earn from them.
- ⇒ At the same time, businesses started to grow, and many companies entered the market. To stand out and protect their brand names and logos, trademark laws became important. These laws helped customers recognize products by their brand, and companies could stop others from copying their names or designs.
- ⇒ In the 20th century, new kinds of entertainment like movies, music, and television became popular. Because of this, copyright laws were expanded to protect these new creative works. Laws were changed around the world to support artists, musicians, filmmakers, and others.
- ⇒ Countries also began to cooperate with each other to protect intellectual property globally. The Paris Convention in 1883 and the Berne Convention in 1886 were some of the first big international agreements. They helped countries agree on basic rules to protect inventors, writers, and artists across borders.
- ⇒ In 1967, the World Intellectual Property Organization (WIPO) was created. Its job is to help countries work together, promote international rules, and build strong IP systems that support innovation.
- ⇒ As technology improved, IP laws were updated to protect things like software, digital media, biotechnology, and industrial designs. For example, the WIPO Copyright Treaty in 1996 was made to protect digital content, especially content shared online.
- ⇒ In the 21st century, the internet became a big part of everyday life. But it also made it easier for people to copy and share things without permission. This caused problems like digital piracy. To stop this, laws like the Digital Millennium Copyright Act (DMCA) were made to protect online content and stop illegal copying.
- ⇒ Globalization showed that countries needed to work together more than ever. The TRIPS Agreement, created under the World Trade Organization (WTO), helped set common rules for IP protection in many countries. It made IP laws more similar around the world and supported fair trade and innovation.

6. What are the kinds of Intellectual Property?

Intellectual Property (IP) includes various types of rights that protect different forms of creativity and innovation. Each kind of intellectual property gives legal protection to a specific type of creation, invention, or idea. These rights help creators, inventors, and businesses to protect their original work and prevent others from using it without permission.

a. Patents ⇒ A patent gives the inventor the exclusive right to make, use, or sell their invention for a certain period, usually 20 years. ⇒ It is granted for new inventions that are useful and not obvious to others in the same field. ⇒ After the patent expires, anyone can use the invention freely. Example: A new type of water-saving washing machine or a new medicine can be protected by a patent.	b. Trade Marks ⇒ A trademark protects names, logos, symbols, or signs used by businesses to identify their goods or services. ⇒ It helps customers recognize the brand and ensures they are not confused by similar-looking products from other companies. ⇒ Trademarks can last forever if they are renewed regularly, usually every 10 years. Example: The Nike "swoosh" logo or the name "Apple" for electronics are protected trademarks.
c. Copyrights ⇒ Copyright protects original works of authorship like books, music, movies, art, and software. ⇒ It gives the creator the right to reproduce, share, or perform the work, usually for the lifetime of the author plus 60 years.	d. Industrial Designs ⇒ Industrial design rights protect the visual design of products, including shapes, patterns, or colors. ⇒ It helps businesses protect the unique look of their products and prevent copying.

⇒ It does not protect ideas, only the expression of those ideas. <i>Example:</i> A novel written by an author, a movie script, or a music album can be protected by copyright.	⇒ This protection usually lasts for 10 years, which can be extended. <i>Example:</i> The unique shape of a perfume bottle or the design of a luxury car's headlight can be protected as an industrial design.
e. Trade Secrets / Undisclosed Information ⇒ Trade secrets are confidential business information that gives a company a competitive advantage. ⇒ It includes formulas, methods, or processes that are not publicly known and are kept secret. ⇒ There is no time limit; the protection lasts as long as the information remains secret. <i>Example:</i> The recipe for Coca-Cola or the formula for a popular cosmetic product is protected as a trade secret.	f. Geographical Indications (GIs) ⇒ A geographical indication is used on products that come from a specific place and have special qualities or reputation because of that origin. ⇒ It protects the name of the place and ensures that only products from that region can use the name. ⇒ GIs help preserve traditional knowledge and promote local goods. <i>Example:</i> Darjeeling tea from India or Champagne from France are protected as geographical indications.
g. Layout Designs of Integrated Circuits ⇒ This protects the unique layout and design of electronic circuits used in microchips and semiconductors. ⇒ It ensures that the creators of circuit designs have exclusive rights to reproduce and use their layout for a certain period. The protection is given for up to 10 years from the date of registration. <i>Example:</i> The internal layout of a microchip used in mobile phones or laptops can be protected under this category.	

7. What is a patent and what are its key elements?

A patent is a legal right given to an inventor for a new invention. It allows the inventor to stop others from making, using, or selling the invention without permission for a certain period, usually 20 years. In return, the inventor must explain the invention clearly in the patent application, so others can learn from it once the patent expires. The idea behind giving patents is to support innovation and help inventors get rewarded for their ideas.

- ⇒ A patent gives legal protection to an invention that is new and useful.
- ⇒ It can be given for machines, products, processes, or chemical compositions.
- ⇒ The inventor has to share full details of the invention in the application.

Elements of a patent:

- ⇒ The invention must be novel, meaning it should be completely new and not publicly known.
- ⇒ It should involve an inventive step, which means it should not be obvious to someone who already has knowledge in that area.
- ⇒ It must be industrially applicable, meaning it can be used in real industries like agriculture, manufacturing, or services.
- ⇒ The inventor must give enough information about the invention so that others can recreate it when the patent protection ends.
- ⇒ **Example:** A scientist inventing a new type of solar panel can apply for a patent. Once granted, no one else can copy that exact design or method for the next 20 years.

8. What are the different types of patents and what can be patented?

Patents are given for different types of inventions based on their use or purpose. Some patents protect inventions that have a practical use, like machines or chemical processes, while others protect how something looks. Some patents also protect new plants or give temporary protection for ideas that are still being developed.

Different types of patents:

- ⇒ **Utility patents** are the most common type. They are given for inventions that have a practical use, such as new machines, software, chemicals, or methods of making things. For example, if a company creates a washing machine that uses less water, they can get a utility patent to protect the invention.
- ⇒ **Design patents** are given for how something looks, not how it works. This includes things like the shape, pattern, or overall appearance of a product. For instance, a company can get a design patent for the unique shape of a smartphone or the style of a lamp to stop others from copying it.
- ⇒ **Plant patents** are given to people who discover or create a new type of plant that can be grown without seeds, like by grafting. For example, if a gardener grows a new rose with a special colour, they can apply for a plant patent.
- ⇒ **Provisional patents** are temporary filings that help inventors protect their idea while they finish working on it. These patents last for 12 months and allow the inventor to use the term "patent pending." For example, a company creating eco-friendly packaging might file a provisional patent while they finalize the product.

9. What is a trademark and why is it important for businesses?

A trademark is a symbol, word, logo, or design that businesses use to distinguish their products or services from others in the market. It helps consumers easily identify the source of the product or service, which builds trust and recognition. Trademarks are important because they ensure that no one else can use the same or similar marks, helping to protect the reputation and distinctiveness of a business. By securing a trademark, a business gains exclusive rights to use it, which can become valuable over time as the brand becomes more recognized.

- ⇒ A trademark can be a word, logo, or even a unique sound that identifies the brand.
- ⇒ It prevents confusion between similar products and services.
- ⇒ It helps to build brand loyalty and trust with consumers.
- ⇒ Trademarks also allow businesses to take legal action if others use similar marks.

10. What are the different types of trademarks?

Trademarks can take many forms, each serving different purposes depending on how they are used by businesses.

- ⇒ Word marks are trademarks made up of words, letters, or numbers, without any special design. For example, "Google" is a word mark.
- ⇒ Design marks are logos or graphic symbols that represent a brand. For example, the Nike "swoosh" logo is a design mark.
- ⇒ Combined marks are a combination of both words and designs. For instance, McDonald's logo includes both the golden arches and the word "McDonald's."
- ⇒ Sound marks are unique sounds that identify a brand, like the NBC chimes or the Intel jingle.
- ⇒ Shape marks protect the unique shape of a product or packaging, such as the Coca-Cola bottle shape.
- ⇒ Color marks protect specific colors or combinations used in branding, like Tiffany Blue.
- ⇒ Trade dress refers to the overall visual appearance of a product or its packaging that identifies the brand, such as Apple's sleek product packaging.

11. How does the trademark registration process work?

Trademark registration involves several steps to ensure the mark is unique and legally protected.

- ⇒ First, you need to search to make sure no one else is using the same or a similar trademark.
- ⇒ Then, you file an application with the trademark office, providing details about the trademark and the goods or services it is linked to.
- ⇒ The trademark office will examine the application to check if it meets requirements like distinctiveness and originality.
- ⇒ If there are no objections, the trademark is published, giving others a chance to oppose it.

- ⇒ Once registered, the trademark owner gets exclusive rights to use the mark in connection with the listed goods and services.
- ⇒ The registration lasts for 10 years, but the trademark owner must renew it to maintain protection.

12. What is copyright and how does it protect creators?

Copyright is a legal right that automatically protects the creative works of a person as soon as they are created. These works can be anything from books, music, and art to software, films, and even photographs. The main purpose of copyright is to give creators exclusive rights over their works, meaning they can control how their creations are used, copied, or distributed. This protection allows creators to benefit from their work by preventing others from using it without permission. Copyright covers a wide range of creative activities, allowing the creator to control who can copy, distribute, or display their work. However, the protection lasts for a limited period, typically for the lifetime of the creator plus an additional number of years, after which the work enters the public domain and can be freely used by anyone.

- ⇒ Copyright automatically applies as soon as a work is created, so no formal registration is needed, although registering can provide extra benefits.
- ⇒ Creators can control how their work is reproduced, shared, or turned into new works based on the original.
- ⇒ The creator's exclusive rights are important because they allow the work to be used for commercial gain while also protecting it from unauthorized copying or use.
- ⇒ Once the copyright term expires, the work enters the public domain, allowing others to use it without restrictions.

13. What types of works can be protected by copyright?

Copyright can protect a wide variety of creative works. It includes literary works like books and articles, musical compositions, and visual art forms such as paintings and sculptures. Dramatic works like plays and films are also protected, as well as sound recordings and computer software. Each of these categories includes a broad range of materials, making copyright a versatile protection for many types of creativity. For instance, a book can be protected as a literary work, a song can be protected as a musical composition, and a painting can be considered an artistic work under copyright law. These protections allow the creators of such works to have control over their use and distribution.

- ⇒ Literary works can be novels, poems, research papers, or essays.
- ⇒ Dramatic works include scripts or plays that are meant for performance.
- ⇒ Musical works can include compositions with or without lyrics, such as songs or instrumental pieces.
- ⇒ Artistic works include visual forms like paintings, sculptures, and even architectural designs.
- ⇒ Films, sound recordings, and computer programs also fall under copyright protection, ensuring that creators retain rights over how their creations are used or modified.

14. How long does copyright last and what happens when it expires?

The duration of copyright protection depends on the type of work and the jurisdiction. In general, for works created by an individual author, copyright lasts for the lifetime of the author plus a certain number of years—usually 50 to 70 years. For works created by a company or works where the author is unknown, the duration might last for 95 years from the date of publication or 120 years from creation, whichever is shorter. Once the copyright period ends, the work enters the public domain, which means anyone can use it freely without needing permission from the original creator or copyright holder. This ensures that after a certain period, the work can be used by the public without restriction, contributing to the spread of knowledge and culture.

- ⇒ Copyright lasts for the life of the creator plus a set number of years, depending on the laws of the country.
- ⇒ After the copyright expires, the work becomes part of the public domain, which means it can be freely used by anyone.
- ⇒ Some famous works like Shakespeare's plays have long been in the public domain, meaning anyone can adapt, perform, or use them without needing permission.

- ⇒ The goal is to allow creators to benefit from their work while also ensuring that, eventually, everyone can access and build on cultural and intellectual works.

15. What is an industrial design and why is it important?

An industrial design refers to the aesthetic or ornamental aspect of a product, which could involve its shape, configuration, pattern, or color. These designs are what make products visually appealing, distinct, and easily recognizable in the market. The protection of industrial designs allows creators to maintain exclusivity over the appearance of their products and prevents others from copying or imitating them. This helps in protecting a product's uniqueness and enables designers to benefit financially from their creative efforts. Industrial designs are critical in industries where the look of a product plays a significant role in attracting consumers and establishing brand identity. By protecting these designs, businesses can ensure that their products stand out in a competitive market, which is crucial for maintaining consumer interest and loyalty.

- ⇒ Industrial designs focus on the visual aspects of a product rather than its functionality.
- ⇒ The design can include the shape, color, or patterns that make the product aesthetically appealing and different from other similar items.
- ⇒ Protection allows designers to keep others from copying or imitating their product's appearance.
- ⇒ This protection ensures that the creator can maintain a competitive edge in the market and potentially benefit financially from the unique design.
- ⇒ It also plays a major role in product differentiation, especially in industries where looks matter significantly to consumers, such as in fashion, electronics, and automobiles.

16. What types of products can be protected by industrial design laws?

Industrial design laws can protect a wide variety of products, ranging from everyday household items to sophisticated technological devices. The protection can be granted to the visual appearance of a product, including its shape, surface decorations, and color combinations. Some examples include the unique shape of a mobile phone or the decoration on a piece of ceramic ware. Even the color patterns on shoes or watches can be considered industrial designs if they have a distinct and unique appearance. In some cases, a product's design may be a combination of several elements like shape, texture, and color that together create a distinctive look. Essentially, any product that has an aesthetic aspect that makes it stand out in the marketplace can be eligible for industrial design protection, provided it meets the requirements of novelty and originality.

- ⇒ Industrial designs cover a broad range of products, including the physical shape and structure of items like mobile phones and furniture.
- ⇒ Surface patterns or decorations, such as textures on fabrics or ceramic items, can be protected if they are unique.
- ⇒ The use of specific color combinations on products like shoes or watches can also be considered for protection under industrial design laws.
- ⇒ Some products might feature a combination of design elements such as shape, color, and pattern that work together to make them unique.
- ⇒ Industrial design protection is aimed at any product whose visual appeal plays an important role in its marketability.

17. How is industrial design protected and what are the legal rights?

Industrial design protection grants exclusive rights to the designer or creator of the design, allowing them to control its use and prevent others from copying it. However, to be granted protection, a designer must typically register their design with the relevant authority, such as a Design Office or Intellectual Property Office. Once registered, the designer has exclusive rights to use, produce, or sell products bearing their design. The protection usually lasts for a set period, often around 10 years, with the possibility of renewal in some countries. The scope of protection is limited to the visual appearance of the product, not its functionality. This means that while others cannot copy the look of the product, they may still produce similar items that serve the same purpose. If someone infringes upon a registered design, the designer can seek remedies such as an injunction to stop the infringing activity, or damages to compensate for any financial loss.

- ⇒ Industrial design protection typically requires formal registration with a relevant authority.
- ⇒ Once registered, the designer gains exclusive rights to the design, preventing others from copying or using it commercially.
- ⇒ Protection generally lasts for 10 years, with the possibility of extending it in some cases.
- ⇒ The protection is limited to the appearance of the product and does not cover its function or underlying technology.
- ⇒ If a design is infringed upon, the designer can seek legal remedies such as injunctions or damages to protect their rights.
- ⇒ In some cases, criminal penalties may apply if the infringement is intentional and involves the production of counterfeit goods.

18. What are trade secrets and why are they important for businesses?

Trade secrets are confidential business information that provides a competitive advantage to a company. These secrets could be formulas, processes, methods, designs, or any information that is valuable to the business but kept secret from the public and competitors. The concept of trade secrets plays an essential role in industries where unique business strategies, innovations, or processes are crucial to gaining and maintaining a competitive edge. The importance of trade secrets lies in their ability to protect key business assets that might otherwise be exploited by competitors, allowing businesses to retain the uniqueness of their products or services. Unlike other intellectual property rights like patents or trademarks, trade secrets don't require formal registration, which makes them easier to manage and maintain confidentiality. They provide ongoing protection as long as the information remains secret, and this can help businesses sustain a long-term advantage without the need to disclose their competitive strategies.

- ⇒ Trade secrets consist of any confidential information that is valuable to the business.
- ⇒ This includes formulas, business strategies, processes, designs, or proprietary software code.
- ⇒ The secrecy of this information helps businesses maintain a competitive advantage and market differentiation.
- ⇒ Unlike patents, trade secrets do not require formal registration, making them easier to manage.
- ⇒ Trade secrets are especially important in industries where unique methods or products are vital to success, such as in the tech or pharmaceutical industries.

19. How are trade secrets protected, and what legal measures support their security?

The protection of trade secrets is based on maintaining their confidentiality, and unlike patents or trademarks, no formal registration is needed. The protection lasts as long as the secret remains confidential and valuable to the business. If the information becomes public or is leaked, the protection ceases. In terms of legal measures, businesses rely on various mechanisms like contracts (non-disclosure agreements or NDAs), internal security measures, and laws to safeguard trade secrets. In India, trade secrets are primarily protected through contracts, with NDAs and confidentiality clauses being common tools for businesses to enforce secrecy. Additionally, laws like the Indian Penal Code can be applied if a trade secret is misappropriated, and the Information Technology Act addresses cybercrimes involving trade secret theft. Internationally, agreements like TRIPS also offer a framework for the protection of trade secrets, ensuring that businesses in member countries have legal support if their secrets are misused. However, the onus of protection largely falls on the business itself to take reasonable steps to keep the information secure, including limiting access, encrypting data, and educating employees.

- ⇒ Trade secrets are protected primarily through confidentiality agreements like NDAs and internal security measures.
- ⇒ Legal protection is available under various laws, including contract law, the Indian Penal Code, and the Information Technology Act.
- ⇒ International agreements like TRIPS help ensure cross-border protection of trade secrets.
- ⇒ Protection is ongoing as long as the information is kept confidential; once it's disclosed, the trade secret loses its protection.
- ⇒ Businesses are responsible for actively securing their trade secrets by taking practical steps like encryption and limiting access.

20. How does the protection of trade secrets differ from other forms of intellectual property like patents and copyrights?

Trade secrets are distinct from other forms of intellectual property, such as patents, copyrights, and trademarks, in several important ways. Unlike patents, which require public disclosure of the invention to secure protection for a fixed period (usually 20 years), trade secrets are maintained in secrecy and can last indefinitely, as long as the information is kept confidential. Patents, copyrights, and trademarks all require some form of registration or public disclosure to be protected, whereas trade secrets do not. Copyrights protect original creative works like literature or art, and trademarks protect symbols, names, or logos that identify a business's goods or services, but both also have limited durations. Trade secrets, on the other hand, do not have a set time limit and continue to be protected as long as they remain secret and valuable. Additionally, while patents and trademarks are public knowledge and available for competitors to see, trade secrets provide exclusive protection as long as they are kept confidential, giving businesses a more enduring form of competitive advantage.

- ⇒ Trade secrets are different from patents, copyrights, and trademarks because they do not require public disclosure or formal registration.
- ⇒ Patents grant exclusive rights for a set period, while trade secrets can last indefinitely if the information is kept secret.
- ⇒ Copyrights protect creative works, and trademarks protect brand identifiers, but both have limited protection periods.
- ⇒ Trade secrets provide lasting protection as long as the business keeps the information confidential and valuable.
- ⇒ Unlike patents and trademarks, which are publicly disclosed, trade secrets are not shared, providing a competitive edge without revealing key business strategies.

21. What are geographical indications, and how do they benefit products and producers?

Geographical Indications (GIs) are signs used to indicate that a product comes from a specific region and has unique qualities or characteristics due to that region's environment, culture, or craftsmanship. GIs help distinguish products by highlighting their origin and ensuring consumers get authentic, high-quality goods.

- ⇒ GIs protect products by ensuring that only those from the specific geographical area can use the GI label, safeguarding authenticity.
- ⇒ They enhance the value of products by linking them to a region's reputation, helping to maintain the quality and heritage associated with the region.
- ⇒ GIs help consumers trust that they are purchasing an authentic product, like Darjeeling Tea, which can only come from the Darjeeling region, ensuring its distinct flavour.
- ⇒ By granting exclusive rights to producers, GIs protect them from unauthorized use of their product names by outside manufacturers, reducing the risk of counterfeiting.
- ⇒ They promote regional economic development by improving market access for local producers and giving them a competitive edge in national and global markets.

22. How does the legal framework for geographical indications work, and what role does international protection play in their security?

The legal protection of GIs in India is regulated by the Geographical Indications of Goods (Registration and Protection) Act, 1999, which provides a system for registering GIs. This ensures that only those in the designated region can legally use the GI, protecting the product from being misused.

- ⇒ The GI registration process requires producers or associations to apply, proving that the product's unique characteristics are tied to its geographical origin.
- ⇒ Once registered, the GI provides exclusive rights, preventing others from using the same name or a similar one, ensuring product authenticity.
- ⇒ Registration is valid for 10 years and can be renewed indefinitely as long as the product retains its connection to the region and its distinct qualities.

- ⇒ International protection for GIs is supported by agreements like TRIPS (Trade-Related Aspects of Intellectual Property Rights), which ensures that GIs are recognized and protected across different countries.
- ⇒ The Lisbon Agreement and other international frameworks allow for the registration of GIs globally, which prevents non-local producers from exploiting the reputation of the product in international markets.

23. What is the significance of layout designs in integrated circuits and how are they protected under intellectual property law?

Layout designs of integrated circuits (ICs) are vital in the electronics and semiconductor industries as they define the physical arrangement of components like transistors, capacitors, and resistors, which are interconnected to create a functioning circuit. These designs are crucial for the performance, efficiency, and reliability of the electronic devices we use daily, such as computers, mobile phones, and medical devices. Since the creation of these designs requires substantial intellectual effort, their protection is essential to prevent unauthorized copying or exploitation by others. Under intellectual property law, layout designs are safeguarded to ensure that creators retain exclusive rights over their innovative work, fostering creativity and technological advancement in the industry.

- ⇒ A layout design is essentially a blueprint of an integrated circuit, outlining where each component is placed and how they are connected. This design ensures the IC functions properly and efficiently.
- ⇒ For a layout design to be eligible for protection, it must be original and not similar to existing designs. If a design is too common or lacks creativity, it does not qualify for legal protection.
- ⇒ Legal protection for these designs helps prevent others from copying or using the design without the creator's permission. Without this protection, creators would lose out on the benefits of their hard work and innovation.
- ⇒ The protection allows creators to control how their designs are used, granting them exclusive rights to reproduce, distribute, and sell products based on the layout design. This promotes further investment in research and development of new technologies.
- ⇒ The protection of layout designs is not only crucial for the individual creator but also benefits the semiconductor industry as a whole by ensuring the continued growth and development of innovative technologies.

24. What are the legal mechanisms available for the protection of layout designs and the challenges faced in enforcing these protections?

The protection of layout designs in integrated circuits is governed by legal frameworks that ensure creators have exclusive rights over their designs. In India, this protection is offered through the Semiconductor Integrated Circuits Layout-Design Act, 2000, which provides a registration system for layout designs, making them eligible for legal protection. This Act is in line with international standards, such as the TRIPS Agreement, which harmonizes intellectual property rights for layout designs globally. The registration of a layout design grants the creator exclusive rights to use, reproduce, and sell products incorporating their design. This legal mechanism prevents unauthorized parties from exploiting the design, thus incentivizing further innovation in the semiconductor industry.

- ⇒ To receive protection, the layout design must be original and not functional alone; it must also involve creativity in its arrangement.
- ⇒ The design must be fixed in a tangible form and must not be a mere combination of known elements arranged in a conventional way.
- ⇒ The protection lasts for a period of 10 years, after which the design becomes public domain and can be used by others.
- ⇒ Registration with the Semiconductor Integrated Circuits Layout-Design Registry is required for legal protection, and once registered, the creator has the right to seek legal action against infringements, including monetary damages and injunctions.
- ⇒ Despite these protections, there are challenges in enforcing these rights. One major challenge is the complexity of modern ICs, which makes it hard to prove the originality of a design when many similar designs are in development.

- ⇒ Another difficulty lies in the global nature of the semiconductor market. If infringement occurs in a country where the design is not protected or where enforcement is weak, it can be hard to stop the unauthorized use of the design.
- ⇒ Reverse engineering is another challenge, as competitors may analyse and copy designs through disassembling integrated circuits, which undermines the exclusivity of the protected design.

25. What is the economic impact of intellectual property rights and how do they contribute to innovation and economic growth?

Intellectual property rights help promote innovation and economic development by giving inventors exclusive rights to their creative work for a limited period. They create a system where investments in research and development are more likely to pay off, encouraging further innovation. They also help address market failures by compensating the high upfront costs of innovation with the possibility of future profits. The exclusive rights granted enable creators to recover their investments while contributing to a vibrant economic market. These rights are vital in sectors where innovation is key, including pharmaceuticals, technology, and the creative industries.

- ⇒ Intellectual property rights provide a solution to market failure in innovation by allowing innovators to earn profits despite high development costs and low reproduction costs.
- ⇒ They offer a temporary monopoly on the use of an invention, helping companies recoup their research investments.
- ⇒ By requiring the disclosure of technical details through mechanisms such as patents, intellectual property rights facilitate the spread of knowledge, even as they protect the creator's interests.
- ⇒ The protection of these rights has encouraged economic growth by fostering entrepreneurship and attracting foreign direct investments, which further strengthens the economy.
- ⇒ Over time, these exclusive rights contribute to job creation and help stimulate progress in technology and industry, reinforcing the overall economic development.

26. What are the main economic benefits and drawbacks of intellectual property rights, and how can public welfare be balanced with private interests?

Intellectual property rights play an essential role in driving innovation by providing creators with exclusive ownership over their work, which can generate revenue and promote further research. They are designed to reward creativity and incentivize investment in new technology and creative expressions while balancing the need for public access to information and affordable products. As a system, intellectual property rights bring both significant economic benefits and certain drawbacks that need careful management. While these rights support market dynamics and economic progress, they can sometimes lead to monopolistic practices and reduced public access to vital knowledge. Finding a balanced approach that ensures fair compensation for creators while preserving public welfare is therefore essential.

- ⇒ Intellectual property rights encourage innovation by allowing creators to profit from their work, which motivates high investments in research and development.
- ⇒ They promote economic growth by helping companies secure a competitive advantage, thereby attracting foreign investors and spurring job creation.
- ⇒ At the same time, these rights can lead to monopolistic behaviour, where companies may charge excessively high prices, making essential products like medications less accessible.
- ⇒ The system may also restrict the flow of knowledge, as overly strict protections can hinder cumulative research and limit advancements that rely on shared ideas.
- ⇒ To balance private and public interests, policy approaches such as compulsory licensing, open innovation practices, and tiered pricing are used to ensure that the benefits of intellectual property rights do not come at the expense of the greater societal good.

27. What are the advantages and disadvantages of Intellectual Property Rights?

Advantages	Disadvantages
⇒ IPRs incentivize creators to innovate by providing exclusive rights.	⇒ IPRs can create monopolies, leading to high prices and reduced accessibility.

⇒ IPRs attract investments and support entrepreneurship, boosting economic development.	⇒ Overlapping patents can create "patent thickets," discouraging further innovation.
⇒ IPRs safeguard creators from unauthorized use, ensuring fair financial returns.	⇒ Copyrights and patents can restrict access to important resources, especially in developing countries.
⇒ Patents and copyrights require disclosure, spreading knowledge and aiding further innovation.	⇒ Monitoring and enforcing IPRs requires significant resources, adding costs for businesses and governments.
⇒ IPRs create jobs in industries like tech, entertainment, and manufacturing.	⇒ Large corporations and developed countries often benefit more from IPRs than smaller creators or developing nations.
⇒ Strong IPRs attract foreign investments and protect intellectual assets globally.	⇒ Overemphasis on profits can lead to the exploitation of art, culture, and traditional knowledge.
⇒ Copyright laws protect creative works, helping artists profit from their talents.	⇒ Long IPR protection periods can delay public access to cultural works or technologies.
⇒ Geographical Indications (GIs) protect local products and traditions, benefiting local economies.	⇒ IPRs can exploit indigenous knowledge without proper compensation or recognition.
⇒ IPRs help drive the development of new technologies by granting temporary monopolies.	⇒ The cost of acquiring and maintaining IPRs can be too high for small businesses or individual creators.
⇒ Eg: Patents encourage drug companies to develop life-saving medicines.	⇒ Eg: High drug prices due to patents make them inaccessible to poorer populations.

28. How can the disadvantages of Intellectual Property Rights be managed to ensure a fair balance between protecting creators' interests and promoting public welfare?

The disadvantages of Intellectual Property Rights can be mitigated through various strategies to balance the interests of creators and the public. One approach is to adopt flexible IPR regimes that consider national priorities and socio-economic conditions, like India's Patent Act, which includes provisions for compulsory licensing to make medicines more accessible. Open innovation models, such as open-source software, encourage collaboration and reduce the negative impacts of exclusive rights. Reducing the duration of IPR protections, particularly for copyrights, can help ensure quicker public access to cultural works and technologies. Additionally, building stronger enforcement mechanisms and raising awareness about IPRs can address issues like counterfeiting and piracy, ultimately supporting both innovation and equitable access.

- ⇒ Flexible IPR laws tailored to a country's needs can ensure that innovation is protected while maintaining public welfare.
- ⇒ Open innovation models, where creators share knowledge for collaborative development, help balance private interests with public benefits.
- ⇒ Shortening the duration of IPR protections, especially for copyrights, ensures faster access to works and technologies.
- ⇒ Strengthening enforcement and educating stakeholders about IPRs can reduce piracy and counterfeiting, making the system more effective.
- ⇒ Provisions like compulsory licensing can allow access to essential goods, like medicines, without stifling innovation.
- ⇒ Providing support for smaller businesses to navigate the complexities of IPRs can promote fair competition.

What are the key features and principles of the Paris Convention for the Protection of Industrial Property, 1883?

The Paris Convention for the Protection of Industrial Property, established in 1883, set out important rules for the protection of industrial property rights across member countries. It provides a framework for patents, trademarks, industrial designs, and other forms of intellectual property. The convention's primary aim is to

ensure that creators and businesses are granted equal protection for their intellectual property in all member countries, which promotes global innovation and trade. The treaty has played a key role in harmonizing intellectual property laws around the world, making it easier for businesses to protect their assets across borders. Some of its core features include:

- ⇒ National Treatment ensures that foreign nationals get the same protection in other countries as nationals of those countries.
- ⇒ Right of Priority allows applicants to file in one country and extend their filing date to other countries within a specified period, maintaining the original filing date.
- ⇒ Patents are independent in each member state, meaning that a patent's validity in one country does not affect its status in another.
- ⇒ Protection against unfair competition, such as misleading advertising or violation of trade secrets.
- ⇒ Temporary protection for industrial property displayed at international exhibitions.
- ⇒ Covers patents, trademarks, industrial designs, and geographical indications.

29. What are the advantages and limitations of the Paris Convention for the Protection of Industrial Property, 1883?

The Paris Convention offers several advantages for creators, businesses, and countries, particularly by simplifying the international protection of industrial property. It sets a standard for the treatment of intellectual property in member countries and promotes global trade and innovation. However, there are limitations to its scope, and it doesn't provide a mechanism for enforcement. Here are the key advantages and limitations:

Advantages:

- ⇒ Establishes uniform standards for industrial property rights across member countries.
- ⇒ Facilitates global trade by protecting intellectual property and encouraging innovation.
- ⇒ Prevents issues like forum shopping, as inventors can expect similar treatment in all member countries.
- ⇒ Strengthens enforcement against piracy and counterfeiting by setting clear standards.
- ⇒ Promotes multilateral cooperation and encourages countries to align their laws with international standards.

Limitations:

- ⇒ No enforcement body to resolve disputes between member countries.
- ⇒ Variations in national laws still exist, leading to differences in how intellectual property is treated.
- ⇒ Excludes copyright protection, which is covered by the Berne Convention.
- ⇒ Lacks modern provisions for newer types of intellectual property like software patents or biotechnology.

30. What are the key features and principles of the Berne Convention for the Protection of Literary and Artistic Works, 1886?

The Berne Convention, signed in 1886, is an important international treaty aimed at protecting the copyright of creators in literary and artistic works. It ensures that creators, such as authors, musicians, and artists, have their works automatically protected in all member countries without the need for registration. The treaty aims to harmonize copyright laws across different nations and ensures creators have rights over the use of their work, whether it is reproduced, translated, or performed. Here are the main principles:

- ⇒ National Treatment ensures that works from one country are protected the same way in all member countries.
- ⇒ Automatic protection, meaning no formal registration is needed for a work to be protected.
- ⇒ Minimum standards for copyright protection, including economic and moral rights.
- ⇒ The protection extends to various types of works like books, music, films, paintings, and even computer programs.
- ⇒ The duration of copyright protection lasts for the life of the author plus 50 years (some countries offer up to 70 years).

31. What are the advantages and limitations of the Berne Convention for the Protection of Literary and Artistic Works, 1886?

The Berne Convention has significantly improved the protection of copyright worldwide. It provides creators with the assurance that their works will be protected in all member countries, promoting international creativity and trade. However, there are some limitations, particularly regarding enforcement and variations in national laws. Below are the advantages and limitations of the convention:

Advantages:

- ⇒ Ensures international protection of creators' works without the need for registration or formalities.
- ⇒ Encourages global exchange of creative works and ensures fair compensation for creators.
- ⇒ Offers both economic and moral rights, such as the right to attribution and to prevent distortion of works.
- ⇒ Protects a wide range of creative works including literature, art, music, and films.
- ⇒ Adaptable to changes in the creative industry, as the convention has been updated several times.

Limitations:

- ⇒ The convention lacks an enforcement mechanism, meaning creators must rely on individual countries' laws to protect their rights.
- ⇒ Variations in national laws, as countries are allowed to have stricter or more lenient laws, leading to inconsistencies in protection.
- ⇒ Duration of copyright protection is flexible, with some countries offering longer protection than others.
- ⇒ Does not address modern challenges like digital rights management or protection of online works (though the WIPO Copyright Treaty has supplemented this).

32. What are the key features and objectives of the TRIPS Agreement, 1994?

The TRIPS Agreement, signed in 1994 under the World Trade Organization (WTO), is an important global treaty that sets minimum standards for the protection and enforcement of intellectual property rights. Its purpose is to harmonize IP laws globally and encourage innovation while ensuring that IP rights do not hinder legitimate trade. It covers a wide range of intellectual property rights, including patents, copyrights, trademarks, and geographical indications. The agreement aims to strike a balance between the interests of IP holders and users.

Objectives of TRIPS:

- ⇒ TRIPS aims to make IP laws more consistent and standardized across all countries to make international trade smoother.
- ⇒ It encourages countries to create and share new technologies for the benefit of society.
- ⇒ TRIPS seeks to balance the rights of IP holders (creators) and users to make sure that IP laws are fair.
- ⇒ The agreement ensures that IP rights do not create unnecessary barriers to international trade.

Features of TRIPS:

- ⇒ TRIPS covers patents, copyrights, trademarks, industrial designs, trade secrets, and geographical indications.
- ⇒ All WTO members must follow TRIPS' minimum standards for protecting and enforcing IP rights.
- ⇒ Countries must treat foreign nationals the same as their own citizens in relation to IP rights.
- ⇒ Countries must offer the same benefits to all WTO member countries, not just their own.
- ⇒ TRIPS requires countries to have effective legal systems to protect IP rights and resolve disputes.
- ⇒ TRIPS includes provisions like compulsory licensing for public health issues and special exemptions for least-developed countries.

33. What are the advantages and criticisms of the TRIPS Agreement, 1994?

The TRIPS Agreement has both benefits and criticisms. On the positive side, it promotes global standards, economic growth, and technology transfer. However, it also faces criticism, especially from developing countries, for its high standards and the costs it imposes. Here are the advantages and criticisms:

Advantages:

- ⇒ Ensures uniform minimum standards for IP protection across countries.
- ⇒ Encourages innovation and attracts foreign investment.
- ⇒ Facilitates the spread of technology, benefiting developing countries.
- ⇒ Protects consumers by reducing counterfeit goods and ensuring product quality.
- ⇒ Allows flexibility for countries to produce affordable generic medicines.

Criticisms:

- ⇒ Developing countries struggle to meet the high standards due to limited resources.
- ⇒ Strong patent protections can increase the cost of medicines and technology.
- ⇒ Developed countries benefit more as they hold most IP rights.
- ⇒ The agreement may favour commercial interests over traditional knowledge and biodiversity conservation.

34. What are the key features and objectives of GATT (General Agreement on Tariffs and Trade)?

GATT was designed to promote international trade by reducing tariffs and other trade barriers. It laid the foundation for global trade negotiations and helped improve commerce between member nations. GATT's key principles focused on the reduction of trade restrictions and fostering a fair and transparent trading environment.

Objectives:

- ⇒ To reduce customs duties and tariffs across member countries.
- ⇒ To eliminate non-tariff barriers such as quotas and import bans.
- ⇒ To promote international trade as a means of encouraging economic growth.
- ⇒ To ensure equal trade advantages among all member countries by following the non-discrimination rule.

Features:

- ⇒ The Most-Favoured-Nation (MFN) principle, which ensures that trade advantages given to one country are extended to all members.
- ⇒ Tariff binding, which means that once tariffs are agreed upon, they cannot be increased without mutual consent.
- ⇒ Transparency in trade policies, making trade practices predictable and clear to all members.
- ⇒ The prohibition of quotas, meaning no country can limit the quantity of imports or exports, except in specific situations.

35. What are the main differences between GATT and WTO (World Trade Organization)?

The WTO was established to build on the foundation laid by GATT, providing a more permanent and structured framework for global trade. While both organizations aim to promote free trade, the WTO offers broader coverage and more robust enforcement mechanisms to resolve trade issues.

Objectives:

- ⇒ The WTO aims to enhance global economic growth by liberalizing trade in goods, services, and intellectual property.
- ⇒ It focuses on providing fair competition and resolving trade disputes among member nations.
- ⇒ It ensures that trade policies are fair, transparent, and accessible to all countries involved.

Features:

- ⇒ The WTO was established in 1995 as a permanent institution, whereas GATT, created in 1947, was a provisional agreement.
- ⇒ The WTO has a broader scope, covering not only goods but also services and intellectual property, while GATT was limited to goods trade.
- ⇒ The WTO has a robust dispute settlement system with binding decisions, unlike GATT, which had weak enforcement mechanisms.
- ⇒ The WTO has a formal structure for decision-making and operations, whereas GATT lacked a comprehensive institutional framework.

36. What are the key objectives and functions of WIPO (World Intellectual Property Organization)?

WIPO is a global organization created to help protect intellectual property rights around the world. It aims to foster innovation and creativity by providing support to countries in developing strong IP systems. WIPO also plays a crucial role in helping countries protect patents, trademarks, and copyrights while offering international services for IP registration.

Objectives:

- ⇒ To promote the protection of intellectual property rights globally.
- ⇒ To help countries develop and improve their intellectual property systems.
- ⇒ To support global economic, social, and cultural development through innovation.
- ⇒ To provide international platforms for the registration of patents, trademarks, designs, and geographical indications.

Functions:

- ⇒ Harmonizing intellectual property laws across countries by creating global treaties and standards.
- ⇒ Administering various international treaties to manage intellectual property.
- ⇒ Offering dispute resolution services through arbitration and mediation.
- ⇒ Providing training and technical assistance to countries to improve their IP systems.
- ⇒ Maintaining global databases for easy access to IP information, such as the Global Brand Database and PATENTSCOPE.

37. How does WIPO support innovation and developing countries?

WIPO plays a significant role in encouraging innovation globally by helping nations improve their intellectual property (IP) systems. It also works closely with developing countries to ensure they benefit from international IP protection and support their capacity to foster innovation and creativity within their borders.

Supporting Innovation:

- ⇒ WIPO publishes the Global Innovation Index, which ranks countries based on their innovation performance and provides valuable data on innovation trends worldwide.
- ⇒ It encourages technology transfer to developing countries, enabling them to adopt new technologies and improve their industries.
- ⇒ It promotes knowledge sharing by making global IP information accessible and fostering international collaboration on IP matters.

Supporting Developing Countries:

- ⇒ WIPO provides technical assistance to help developing nations strengthen their IP systems and enforce IP rights effectively.
- ⇒ It develops tailored programs to integrate intellectual property into the development strategies of nations, ensuring that countries can leverage IP for economic growth.
- ⇒ Through capacity building, WIPO offers training and resources to enhance the skills of IP professionals and help governments better manage their IP frameworks.

MODULE 2

1. What is the evolution of patent law in India, and how has it transformed over time?

The evolution of patent law in India reflects the country's changing approach to intellectual property protection, influenced by global trends and domestic needs. Initially, patent laws were weak and informal, with limited protections for inventors. Over time, particularly after independence, India's patent law sought to balance innovation with public welfare, especially in critical sectors like healthcare and agriculture. Key milestones like the Indian Patents Act of 1970, and amendments in response to international agreements like TRIPS, shaped the modern patent framework in India.

Evolution of Patent Law:

- ⇒ **Ancient and Medieval Period:** In ancient India, knowledge was shared openly with no formal patent system. During medieval times, guilds protected trade secrets informally.
- ⇒ **Colonial Period:** British introduced the first patent law in 1856. Later, the Indian Patents and Designs Act of 1911 provided a more structured system.
- ⇒ **Post-Independence (Indian Patents Act, 1970):** Focused on balancing innovation with public interest by allowing process patents in crucial sectors like pharmaceuticals and food.
- ⇒ **Globalization and TRIPS Agreement (1994):** TRIPS required India to provide product patents, leading to amendments in 1999, 2002, and 2005 that expanded the scope of patentable inventions and introduced stricter patent regulations.
- ⇒ **Recent Developments:** Measures like digital filing, fast-track mechanisms, and judicial rulings have helped streamline and modernize India's patent law.

2. How did India adapt its patent law to comply with global standards, and what were the major changes?

India's adaptation to global standards, especially through the TRIPS Agreement, was a significant turning point in the evolution of its patent law. The country had to modify its legal framework to meet international obligations while ensuring that public welfare, particularly in sectors like healthcare, was not compromised. These changes led to new provisions in the Indian Patents Act, particularly to include product patents and strengthen protections for intellectual property.

Adaptation to Global Standards:

- ⇒ **TRIPS Agreement:** India had to comply with the TRIPS agreement, which required product patents in all fields, including pharmaceuticals and biotechnology.

Amendments to the Patents Act:

- ⇒ **First Amendment (1999):** Allowed product patent applications for sectors like pharmaceuticals, with exclusive marketing rights until patents were granted.
- ⇒ **Second Amendment (2002):** Extended patent terms to 20 years for all inventions and introduced TRIPS-related obligations like national treatment.
- ⇒ **Third Amendment (2005):** Allowed product patents in pharmaceuticals and chemicals, introduced pre-grant and post-grant opposition, and disallowed "evergreening" of patents (Section 3(d)).

Judicial Interpretations: Court rulings, such as the Novartis v. Union of India case, upheld the prevention of evergreening, ensuring that patents are not granted for minor, ineffective changes to existing medicines.

3. What are the criteria for patentability in India, and which inventions are considered patentable?

The Indian Patents Act, 1970, sets rules for what kinds of inventions can be given a patent. These rules make sure that only real innovations are protected, while also keeping in mind what is good for the public. For an invention to be patented, it has to meet certain conditions. It must be new, involve a new idea or improvement, and be useful in industries. Also, the invention must not fall under the list of things that cannot be patented.

- ⇒ The invention must be new and not already known or used.
- ⇒ It must involve an inventive step, meaning it should be something that is not obvious to someone who knows the field well.
- ⇒ The invention must be able to be used in industry; it should have practical use and not just be an idea.
- ⇒ The invention must not fall under the excluded categories mentioned in the law.

Patentable inventions include:

- ⇒ New machines, tools, or devices that work better than before.
- ⇒ New chemical products, like medicines or biotech products.
- ⇒ Software-related inventions that help in solving technical problems.
- ⇒ New and better ways of making products or running industrial processes.

4. What are the categories of non-patentable inventions in India?

The Indian Patents Act, 1970, also lists certain types of inventions that cannot be given a patent. These exclusions are in place to protect the public, ethical values, and the environment. The law makes sure that inventions that harm society or do not meet the standard for being real inventions are not patented.

- ⇒ Trivial discoveries or new uses for already known substances cannot be patented if they do not bring something new.
- ⇒ Inventions that go against natural laws, like a machine that runs forever without any energy, cannot be patented.
- ⇒ Inventions that are harmful to society, like dangerous weapons or things that harm health or the environment, cannot be patented.
- ⇒ Simple mixtures of known substances that do not show any new or useful effect are not patentable.
- ⇒ Methods for farming or growing plants, like crossbreeding plants, cannot be patented.
- ⇒ Mathematical formulas, business plans, and simple computer programs cannot be patented.
- ⇒ Artistic works, like paintings or sculptures, that do not have a technical function, cannot be patented.
- ⇒ Traditional knowledge, like using turmeric for healing, cannot be patented.
- ⇒ Inventions related to atomic energy cannot be patented in India.

5. What is the difference between patentable and Non-Patentable inventions.

Patentable Inventions	Non-Patentable Inventions
⇒ Must be new and not already known or used.	⇒ Cannot be just discoveries of existing things or substances.
⇒ Should involve a new idea or improvement that is not obvious.	⇒ Cannot go against natural laws, like a machine that works forever.
⇒ Must have practical use in an industry.	⇒ Cannot harm public health, morality, or the environment.
⇒ Can be new machines, tools, or devices that improve existing ones.	⇒ Cannot be simple mixtures that don't create anything new.
⇒ Can include new chemical products, medicines, or biotech inventions.	⇒ Cannot be methods for farming or breeding plants.
⇒ Can involve software-related inventions with technical applications.	⇒ Cannot include mathematical formulas or business strategies.
⇒ Can involve new processes for making things or running industries.	⇒ Cannot be artistic works without technical function, like paintings.
⇒ Must be useful in real-world industries.	⇒ Cannot be based on traditional knowledge or natural substances.
⇒ Must meet specific legal requirements to qualify for a patent.	⇒ Cannot involve inventions related to atomic energy.

6. What are the prerequisites for an invention to be eligible for patent protection under the Indian Patents Act, 1970?

The Indian Patents Act, 1970, lays down three fundamental prerequisites for an invention to be eligible for patent protection: novelty, inventive step, and industrial application. These prerequisites ensure that only truly innovative, useful, and practical inventions receive patents, protecting intellectual property while also benefiting society and the economy.

- ⇒ **Novelty:** The invention must be new and not part of the public domain before the date of filing the patent application. It should not have been disclosed in any previous publications, patents, or public uses. If an invention has been described, shown, or used before, it is considered lacking in novelty and is not patentable.
- ⇒ **Inventive Step:** The invention must involve an inventive step, meaning it should not be obvious to someone with knowledge and experience in the field. The invention should contribute significantly to existing technology or knowledge and should not be a simple or trivial improvement on what already exists.
- ⇒ **Industrial Application:** The invention must have practical utility and should be capable of being used or produced in an industry. It should be something that can be reproduced or manufactured consistently, and it should have a clear use in the commercial or industrial sector.

7. Why are novelty, inventive step, and industrial application important for patent eligibility?

These three criteria are crucial in ensuring that patents are granted for only valuable, new, and practical inventions that contribute to technological advancement and economic growth.

- ⇒ **Novelty:** This requirement ensures that patents are granted only for new ideas and not for things that have already been publicly disclosed. It helps to prevent duplicating existing knowledge and encourages innovation by rewarding truly original ideas. Without novelty, patents could be granted for inventions that already exist, undermining the purpose of patent protection.
- ⇒ **Inventive Step:** This ensures that the invention is not merely a simple or obvious modification of existing inventions. It protects inventions that represent a significant breakthrough in the field, encouraging creativity and advancements in technology. If an invention is obvious to someone skilled in the area, it does not warrant patent protection, as it would not contribute to technological progress.
- ⇒ **Industrial Application:** This requirement ensures that the invention is not just a theoretical idea but something that can be practically applied in industry. It guarantees that patents are given to inventions that have tangible benefits and can contribute to economic growth, manufacturing, and the overall development of industries. This also prevents granting patents for abstract ideas or concepts that have no real-world use.

8. What is Prior Art and why is it important in determining patent novelty?

Prior art is a crucial concept in patent law that refers to any information that existed before the filing date of a patent application. This information can include existing patents, publications, inventions, or even public use of a product or method. Prior art helps determine whether an invention is new and non-obvious, which are two essential criteria for patentability. It includes everything that is publicly known or disclosed before the application, regardless of whether it has been patented or not.

- ⇒ Prior art can include scientific journals, websites, books, patents, or even public use or sales of a product.
- ⇒ It is global in scope, meaning prior art from anywhere in the world can affect the novelty of an invention.
- ⇒ Prior art includes various forms of disclosure: written, oral, visual, or practical demonstrations.
- ⇒ If prior art reveals the same or a very similar invention to what is being claimed, it can impact the novelty of the invention.
- ⇒ Some examples of prior art include academic papers, published software codes, or public demonstrations of an invention before the patent application is filed.
- ⇒ The Supreme Court case, *Bayer Corporation v. Union of India* (2009), highlighted that prior art includes anything made available to the public before the patent filing.

9. What does Anticipation mean in patent law and how does it affect patent applications?

Anticipation refers to the situation where a prior art reference completely or almost completely discloses the invention in question, which means the invention lacks novelty. If prior art fully discloses an invention, it cannot be patented because it is not considered new. The concept of anticipation focuses on whether an invention has been previously disclosed to the public, either directly or indirectly, before the patent filing date.

- ⇒ Anticipation occurs when prior art discloses the invention in full or in a way that a skilled person can easily deduce the complete invention.
- ⇒ Even if only part of the invention is disclosed in prior art, if it leads to the same idea, the invention can be considered anticipated.
- ⇒ The key difference between absolute novelty and relative novelty comes into play when determining anticipation: Absolute novelty requires that no part of the invention has been disclosed anywhere, while relative novelty allows for minor variations or modifications.
- ⇒ There are two types of anticipation: direct (where the prior art explicitly discloses the invention) and constructive (where the prior art hints at or partially discloses the invention but a skilled person can figure out the whole idea).
- ⇒ A case like *R. S. P. (India) Ltd. v. Teja Pharmaceutical* (2000) clarified that anticipation occurs when the prior art document includes all essential elements of the invention.

10. Who is a Person Skilled in the Art, and how does this concept help evaluate patent applications?

A Person Skilled in the Art (PSA) is a hypothetical individual with average knowledge and skill in a particular technical field. This person is used to assess whether an invention is obvious or non-obvious in light of prior art. The PSA represents the typical practitioner or expert in the field who can use standard techniques and methods to solve problems. This concept plays a key role in determining whether an invention involves an inventive step or if it can be easily deduced from prior art.

- ⇒ A person skilled in the art is presumed to have general knowledge of their field and can use standard methods and techniques.
- ⇒ They are not extraordinary or genius-level experts but are assumed to have the ability to understand and apply existing knowledge.
- ⇒ The PSA is used to test the inventiveness of an invention by asking whether they could have come up with the invention by simply combining existing knowledge in the field.
- ⇒ This concept helps in evaluating whether an invention is obvious or if it represents a true leap in innovation.
- ⇒ If an invention is obvious to a person skilled in the art based on prior art, it will not be considered patentable.
- ⇒ In cases like *Ciba-Geigy Limited v. Hindustan Ciba-Geigy Ltd.* (1982), the Bombay High Court emphasized that the inventive step test should consider what a person skilled in the art would know from prior art.

11. What is a Provisional Specification, and what are its benefits in patent filing?

A provisional specification is an initial, temporary document filed when applying for a patent. It provides a brief description of the invention, allowing the applicant to establish a filing date without needing to include all the detailed information required for a complete patent application. It serves as a placeholder and gives the applicant up to 12 months to finalize and submit the full details of the invention.

- ⇒ The provisional specification helps secure an early filing date, which is important if other inventors try to patent similar ideas later.
- ⇒ It gives inventors more time (up to 12 months) to refine and develop the invention before filing a complete specification.
- ⇒ The provisional specification is simpler and shorter, focusing on basic details of the invention.
- ⇒ It can include a title, a short description of the invention, and optional drawings to illustrate the idea.
- ⇒ Claims in a provisional specification are optional and can be broad, as they will be revised in the complete specification.

- ⇒ It allows for quick filing, offering flexibility for inventors still working on their invention.
- ⇒ Filing a provisional specification provides some legal protection while the invention is being developed further.
- ⇒ 'ICICI Bank Ltd. v. Bharat Inventions Ltd.' (2010), which emphasized the importance of securing a priority date through the provisional specification.

12. What is a Complete Specification, and why is it essential for patent protection?

A complete specification is a final and detailed document submitted after a provisional specification or as the first filing for a patent. This document provides a comprehensive description of the invention, along with specific claims that define the boundaries of the patent protection sought. It must fully disclose the invention, meeting all the requirements for a patent application under the law.

- ⇒ The complete specification provides full details of the invention, explaining how it works and its unique features.
- ⇒ It includes claims that clearly define what is protected by the patent, making it crucial for establishing legal rights.
- ⇒ The specification must meet the patent criteria of novelty, inventive step, and industrial applicability.
- ⇒ It contains a title, description of the technical field, background of existing technologies, and a summary of the invention.
- ⇒ The detailed description in the complete specification must be sufficient for someone skilled in the field to understand and reproduce the invention.
- ⇒ Drawings or diagrams may be included to illustrate the invention clearly, helping others understand its structure and operation.
- ⇒ The complete specification helps secure the patent and ensures that its scope is well-defined, protecting the invention from future legal challenges.
- ⇒ 'Kochi Port Trust v. V. Ramalingam' (2014), highlighted that the clarity and completeness of claims in a complete specification are vital for enforcing patent rights.

13. What are the differences between Provisional Specifications and Complete Specifications in patent filings?

Provisional Specifications	Complete Specifications
⇒ It is a temporary document filed to secure an early filing date for the invention.	⇒ It is a final and detailed document required to secure patent protection for the invention.
⇒ It is used when the invention is still in the development stage.	⇒ It contains a full, detailed description of the invention as well as its claims.
⇒ The description is brief and general, offering only basic details of the invention.	⇒ The description is comprehensive and covers every aspect of the invention.
⇒ The claims are not mandatory but can be included to outline broad features of the invention.	⇒ The claims are mandatory and precisely define what the patent protects.
⇒ It provides a priority date for the invention to protect against similar inventions later.	⇒ It establishes the actual scope of protection and allows for patent enforcement.
⇒ It can be filed quickly with limited details, saving time for the inventor.	⇒ It takes more time to prepare, as it requires a full disclosure of the invention.
⇒ It allows up to 12 months for the inventor to complete the invention and file a complete specification.	⇒ It must be filed to finalize the patent process and cannot be revised once filed.
⇒ Drawings are optional and may be included to clarify basic aspects of the invention.	⇒ Detailed and precise drawings are included, fully explaining the invention's design and function.
⇒ It can be filed without fully determining the final claims or detailed description of the invention.	⇒ It must fully describe the invention so that someone skilled in the field can replicate it.
⇒ Filing a provisional specification ensures the invention is officially recognized on a specific date.	⇒ It is used to assess whether the invention meets patentability criteria like novelty and inventive step.
⇒ It is not required to disclose prior art or the background of the invention.	⇒ It must include a background section, explaining existing technologies and how the invention improves upon them.

14. What is Pre-Grant Opposition and how does it work in the Indian patent system?

Pre-grant opposition is a process that allows individuals or organizations to challenge a patent application before the patent is granted. This helps ensure that only valid and deserving inventions receive patent protection. It is a way for the public to have a say in the patent examination process, ensuring the invention meets all legal requirements.

- ⇒ It can be filed by any person, including individuals, companies, or organizations.
- ⇒ The opposition must be filed before the patent is granted, and it helps prevent the grant of invalid patents.
- ⇒ Grounds for opposition include lack of novelty, lack of inventive step, and non-industrial applicability, among others.
- ⇒ The opposition must be supported with evidence and documents to substantiate the claims.
- ⇒ The patent office reviews the opposition and makes a decision on whether the patent should be granted, modified, or rejected.
- ⇒ A pre-grant opposition is faster and less costly compared to a post-grant opposition.
- ⇒ It helps ensure public involvement in the patent process.
- ⇒ The decision is made based on the evidence and arguments presented by both the patent applicant and the opponent.
- ⇒ *Zydus Alidac Ltd. v. Wockhardt Ltd. (2013)*, where the Delhi High Court ruled that a person could oppose a patent based on prior disclosures.

15. What is Post-Grant Opposition and what role does it play in the patent system?

Post-grant opposition is a process that allows anyone to challenge the validity of a patent after it has been granted. This provides an opportunity to contest the patent if it is believed to have been wrongly granted, ensuring the patent system remains fair and valid.

- ⇒ It can be filed by any person within one year from the date the patent is granted.
- ⇒ Similar to pre-grant opposition, it challenges patents on grounds like lack of novelty, inventive step, or non-industrial applicability.
- ⇒ It offers a way to contest patents after they have been granted, providing a chance to correct invalid patents.
- ⇒ The procedure involves filing written opposition, supported by evidence and documents.
- ⇒ Both the opponent and the patent holder are heard before a decision is made by the Patent Office.
- ⇒ Post-grant opposition can help prevent the abuse of patent rights by removing unjustified patents.
- ⇒ It is more cost-effective and faster than litigation in court.
- ⇒ The opposition proceedings focus on the public interest, preventing overly broad patents that might restrict competition or innovation.
- ⇒ *Bayer Corporation v. Union of India (2013)*, where the Delhi High Court emphasized the importance of post-grant opposition in ensuring only valid patents are upheld.

16. What is the process involved in the granting and sealing of patents in India?

The granting and sealing of patents is a crucial step in the Indian patent system that ensures the inventor's exclusive rights over their invention. This process involves several stages, beginning with the filing of the patent application and ending with the issuance of the patent certificate.

- ⇒ The process begins with the filing of a patent application, either provisional or complete, at the Indian Patent Office.
- ⇒ After 18 months, the application is published in the Patent Journal, allowing third parties to file objections.
- ⇒ A request for examination must be filed within 48 months from the filing or priority date, initiating the examination process.
- ⇒ The Patent Office issues a First Examination Report (FER), and the applicant must respond to any objections raised.
- ⇒ If the applicant addresses the objections, the patent application can be approved.

- ⇒ Once the application meets all the legal requirements, the patent is granted.
- ⇒ The sealing process follows, which involves formal stamping and signing of the patent document, making it official.
- ⇒ A patent certificate is issued, confirming the grant of the patent and marking the date of sealing as the official date of grant.
- ⇒ The granted patent is entered into the patent register, documenting all relevant details like the name of the inventor, patent number, and claims.
- ⇒ After sealing, the inventor enjoys exclusive rights to exploit the invention commercially and prevent others from using it without consent.

17. What is the term of a patent and how is it calculated in India?

The term of a patent defines how long the patent holder can enjoy exclusive rights to the invention. In India, the term is usually set at 20 years, but there are certain conditions and factors that may affect the duration of the patent.

- ⇒ The standard term of a patent is 20 years from the date of filing the application or from the priority date, as per the Indian Patents Act, 1970.
- ⇒ This 20-year period is in line with international standards, such as the TRIPS Agreement.
- ⇒ For industrial design patents, the term is 10 years from the date of registration, with a possible 5-year extension.
- ⇒ Patent term adjustments or extensions are not available in India for delays caused by regulatory processes, unlike in some other countries.
- ⇒ The term of the patent can be shortened if the patentee fails to pay annual maintenance fees.
- ⇒ If the patent is revoked due to invalidity or failure to meet patentability requirements, the term may end prematurely.
- ⇒ Once the 20-year term expires, the patent rights end, and the invention enters the public domain, allowing others to use the invention without the patent holder's permission.
- ⇒ The expiration of a patent can lead to increased competition, especially in industries like pharmaceuticals where generic versions of drugs are introduced once patents expire.

18. What are the exclusive rights of a patentee under Indian law?

When a patent is granted to an inventor, they gain exclusive rights to their invention, which allows them to control how it is used and who can profit from it. These rights are essential to encourage innovation and ensure that inventors can benefit from their hard work and investment.

- ⇒ The inventor has the right to stop others from making, using, selling, or importing their invention without asking for permission. This right lasts for 20 years.
- ⇒ The inventor can allow other people or companies to use their invention through a license. They can give permission to one company (exclusive) or many companies (non-exclusive).
- ⇒ The inventor can sell their patent to someone else. The new owner will have all the rights to use or sell the invention.
- ⇒ If someone uses the invention without permission, the inventor can go to court to stop them and ask for money as a penalty.
- ⇒ Even though the patent only works in India, the inventor can get a patent in other countries to protect their invention there too.

19. What are the exceptions to the exclusive rights of a patentee?

While patentees have strong rights to protect their inventions, there are some situations where others may use the invention without infringing the patent. These exceptions are designed to balance the interests of innovation and public welfare.

- ⇒ Other people can use the invention for research or testing, as long as it's not for making money. This helps scientists and researchers work on new ideas.
- ⇒ The government can use the invention if it's needed for public services, like in emergencies or for the army. But the government must pay the inventor for using it.

- ⇒ In some cases, the government can allow another company to use the invention without the inventor's permission. This can happen if the inventor is not using the invention much or if the invention is too expensive for the public.
- ⇒ Once a patented product is sold in another country, the inventor can't stop it from being sold in India. This rule is called "exhaustion of rights."

20. What is Surrender in Patent Law?

Surrender of a patent refers to the voluntary giving up of patent rights by the patent holder. This process is initiated by the patentee, and it involves a formal request to the Patent Office. Surrender is typically done when the patentee no longer wishes to hold exclusive rights over the invention, or if the patentee wants to release the invention into the public domain.

- ⇒ Surrender is initiated by the patentee, not by any third party or government authority.
- ⇒ The process involves filing a request with the Patent Office to give up the patent rights.
- ⇒ Once the surrender request is accepted, it is published by the Patent Office.
- ⇒ After the surrender, the rights to the invention are fully extinguished, and anyone can use, make, or sell the invention without the need for permission from the original patent holder.
- ⇒ Surrender can happen at any time during the term of the patent, but it must be done voluntarily by the patentee.
- ⇒ Unlike revocation, surrender does not involve any legal action or dispute; it is a choice of the patentee.
- ⇒ Once surrendered, the patent no longer provides any legal protection or exclusivity for the invention.

21. What is Revocation in Patent Law?

Revocation of a patent refers to the cancellation of the patent by the Patent Office or a court. It can be initiated by a third party, such as a competitor, or by the government. The grounds for revocation are specified under the Indian Patents Act, 1970. Revocation results in the termination of the patent rights and makes the invention part of the public domain.

- ⇒ Revocation can be initiated by the government, a competitor, or an interested party who believes the patent is invalid.
- ⇒ The grounds for revocation include lack of novelty, inventive step, non-working of the patent, misrepresentation during the filing process, and public health concerns.
- ⇒ If the patent holder fails to meet the legal requirements or if the invention does not fulfill the patentability criteria, the patent may be revoked.
- ⇒ A petition for revocation must be filed with the Patent Office, which will then send a notice to the patentee.
- ⇒ The patent holder has an opportunity to defend the validity of the patent.
- ⇒ If the grounds for revocation are found valid, the patent is revoked, and the invention enters the public domain.
- ⇒ Revocation can also happen if the patent is not commercially exploited in India for a specific period, such as three years.

22. Difference Between Surrender and Revocation

Surrender	Revocation
⇒ Surrender is a voluntary action taken by the patent holder to give up their rights.	⇒ Revocation can be initiated by the government, a competitor, or any interested party.
⇒ The process involves the patent holder filing a request with the Patent Office.	⇒ The process begins when a petition is filed by a third party or the government to cancel the patent.
⇒ Once surrendered, the rights of the patentee are fully extinguished.	⇒ Revocation results in the cancellation of the patent rights by the Patent Office.
⇒ Surrender is not based on any disputes; it is a voluntary decision.	⇒ Revocation is based on grounds like lack of novelty, fraud, or non-working of the patent.
⇒ Surrender does not involve any legal proceedings or opposition.	⇒ Revocation may involve legal proceedings, where the patentee can defend the patent's validity.

⇒ The process ends when the surrender is published by the Patent Office.	⇒ Revocation ends when the Patent Office issues an order for the patent to be revoked.
⇒ The invention becomes part of the public domain after surrender.	⇒ Once revoked, the patent is no longer valid, and the invention is available for public use.
⇒ Surrender can be done at any time during the term of the patent.	⇒ Revocation can be done only if there are valid grounds, and the patent is invalid.

23. What is the Concept of Assignment of Patents?

Assignment of a patent is the process where the original owner (the assignor) transfers the full ownership and rights of the patent to another party (the assignee). This means the assignee becomes the new owner of the patent and has the right to use, sell, or license the invention. The assignor no longer has any control over the patent after the transfer.

- ⇒ Assignment involves the complete transfer of ownership of the patent from the original owner to another party.
- ⇒ Once the patent is assigned, the original owner (assignor) loses all rights over the invention.
- ⇒ The assignee becomes the new owner and can exploit or sell the invention as they wish.
- ⇒ The assignment must be documented through a written agreement, which is then recorded at the Patent Office.
- ⇒ A one-time payment or agreed amount is often paid by the assignee to the assignor for the patent.
- ⇒ The process includes a formal agreement and filing with the Patent Office to make the transfer legally binding.
- ⇒ After the assignment is recorded, it is publicly published in the Patent Journal to inform others about the new ownership.

24. What is the Concept of Licensing of Patents?

Licensing is a process where the patent holder (licensor) grants permission to another party (licensee) to use, make, or sell the invention. Unlike assignment, the ownership of the patent remains with the licensor, and only the rights to use the invention are given to the licensee for a certain time or in specific regions.

- ⇒ Licensing allows the patent holder to retain ownership while giving another party permission to use the invention.
- ⇒ There are two types of licenses: exclusive and non-exclusive. In an exclusive license, only one licensee has the right to use the invention, whereas in a non-exclusive license, the patent holder can grant rights to multiple licensees.
- ⇒ Licensing agreements are formal contracts that detail the terms of use, including payment (e.g., royalties) and geographical scope.
- ⇒ Royalties are often paid to the patent holder as a percentage of the revenue generated from the invention's use.
- ⇒ The license agreement also sets the duration and terms for how long the license is valid.
- ⇒ If the license is exclusive, the licensee has the right to prevent others from using the invention in the specified area.
- ⇒ Licensing agreements can also include provisions for revoking the license if either party fails to meet their obligations.

25. What is the Difference Between Assignment and Licensing in the context of Patent law?

Assignment	Licensing
⇒ Ownership of the patent is fully transferred to the assignee.	⇒ Ownership remains with the patentee, and only the rights to use the invention are given to the licensee.
⇒ The assignee has full rights to exploit, sell, or license the invention.	⇒ The licensee has the right to use the invention, but the patent holder retains ownership and may still exploit the patent themselves.
⇒ The assignment is typically permanent, with no duration limit.	⇒ Licensing can be for a specific period or term, depending on the agreement.

⇒ The original owner loses all rights to the patent once it is assigned.	⇒ The patent holder can continue to grant licenses to others (in case of non-exclusive licenses).
⇒ Payment for assignment is usually a one-time lump sum or agreed amount.	⇒ Licensing usually involves ongoing payments such as royalties based on the revenue generated by the licensee.
⇒ Assignment is a complete transfer of rights with no future involvement from the assignor.	⇒ Licensing allows the patent holder to retain some control over the invention and its use.

26. What is the Concept of Fair Use in Patent Law?

Fair use in patent law refers to certain situations where a patented invention can be used without infringing on the patent holder's rights. While the term "fair use" is more common in copyright law, patent law also includes exceptions that allow limited use of patents, particularly for non-commercial purposes like research or experimentation.

- ⇒ Fair use in patent law generally applies when a patented invention is used for purposes like research, experimentation, or academic study.
- ⇒ It does not involve making a profit or commercial exploitation of the invention.
- ⇒ The most common exception to patent rights is "experimental use," which allows others to use the patent for improving, testing, or studying the invention.
- ⇒ Even though "fair use" is not explicitly defined in patent law, similar exceptions exist through judicial decisions, international treaties, or national laws.
- ⇒ In some countries like India, the law allows private or non-commercial use of a patented invention without infringing the patent.
- ⇒ The experimental use exception has been limited in some cases. For example, in the U.S., it used to be a broader defence against patent infringement claims but has been narrowed by courts in some cases.

27. What are the Limitations of Fair Use in Patent Law?

Although fair use is recognized in certain contexts, it has limitations and is not as widely accepted as in other areas of intellectual property, like copyright law.

- ⇒ Fair use typically does not apply to commercial use of a patented invention. The patent holder retains the exclusive rights to exploit the invention for profit.
- ⇒ The scope of the "experimental use" exception is limited to non-commercial purposes like research and does not apply to every use of the patent.
- ⇒ Some exceptions, like compulsory licensing, allow third parties to use a patent without permission from the patent holder but are only invoked under specific conditions such as public health or national security concerns.
- ⇒ Fair use in patent law is generally used as a defence in litigation, and the burden of proof usually falls on the defendant to show that their use falls under an exception like experimental use or prior use.
- ⇒ The right to use a patented invention without permission is not easily granted and must meet specific legal standards, making fair use in patents more restrictive than in copyright law.

28. What is Patent Infringement and What Are Its Types?

Patent infringement happens when someone uses, makes, sells, or distributes a patented invention without the patent holder's permission. This violates the exclusive rights granted to the patent owner. There are different types of patent infringement:

- ⇒ Direct infringement happens when someone directly uses or makes a patented product or method without permission.
- ⇒ Indirect infringement occurs when someone helps or encourages another person to infringe on a patent. This can happen if they sell parts or encourage others to use the patented invention.
- ⇒ Wilful infringement is when someone knowingly and intentionally infringes a patent, often leading to higher damages in court because it shows deliberate disregard for the patent holder's rights.

29. What Are the Remedies Available for Patent Infringement?

When someone infringes on a patent, the patent holder can seek different legal remedies to stop the infringement and compensate for losses. The main remedies include:

- ⇒ An injunction is a court order that stops the infringer from continuing their actions. This can be temporary (preliminary) or permanent depending on the case.
- ⇒ Damages are money awarded to the patent holder to compensate for losses caused by the infringement. This can include actual damages for lost profits or consequential damages for indirect losses like damaged business relationships.
- ⇒ An account of profits forces the infringer to pay back the money they made from infringing on the patent.
- ⇒ In some cases, patent infringement can lead to criminal penalties, like fines or jail time, especially in large-scale cases like counterfeiting.

30. What Are the Common Defences to Patent Infringement?

When someone is accused of patent infringement, they can use different defences to protect themselves. Some common defences include:

- ⇒ Arguing that the patent is invalid because it doesn't meet the legal requirements like being new or inventive.
- ⇒ Claiming that their product or process does not actually infringe on the patent because it doesn't use all the elements of the patented invention.
- ⇒ The prior use defence argues that the accused person was already using the patented invention before the patent was granted.
- ⇒ The exhaustion of patent rights defence says that once a patented product has been sold, the patent holder loses control over how that product is used.
- ⇒ The experimental use defence can be used if the patented invention is being used for research or non-commercial purposes.
- ⇒ If a compulsory license has been granted for the invention, the defendant can argue that they have permission to use it without infringing the patent.

31. What is the Role of a Patent Agent?

A patent agent helps inventors and businesses protect their inventions by guiding them through the process of getting a patent. A patent gives an inventor the exclusive right to use, make, or sell their invention for a certain period. Patent agents work as intermediaries between the inventor and the Indian Patent Office (IPO), which is responsible for granting patents.

Important roles of a patent agent:

- ⇒ Patent agents assist clients by drafting and filing patent applications with the Indian Patent Office. The application needs to include a title for the invention, a description, claims about the invention, and possibly drawings.
- ⇒ Patent agents guide clients on whether their invention is eligible for a patent. They check if the invention is new, useful, and non-obvious, which are the basic requirements for a patent.
- ⇒ If the patent office has any concerns or objections about the application, patent agents are responsible for responding to them. They represent the client in front of the patent office and make sure the application meets all requirements.
- ⇒ Patent agents represent their clients when dealing with the Indian Patent Office. They can attend hearings and communicate with the office on behalf of the inventor, making sure everything is done correctly.
- ⇒ Patent agents are not required to be lawyers, but they have specialized knowledge of patents. They are specifically trained to handle patent-related matters. While many patent agents may have a legal background, their main job is to assist with patent applications and protect intellectual property rights.

32. What Are the Qualifications and Duties of a Patent Agent?

Becoming a patent agent requires specific qualifications and training. In India, to become a patent agent, one must have a certain level of education, pass an exam, and register with the Indian Patent Office.

- ⇒ A patent agent must have a degree in science, engineering, or technology from a recognized institution. This ensures the agent has enough technical knowledge to understand inventions and patents.
- ⇒ After completing the educational requirements, candidates must pass the Patent Agent Examination. This exam tests the agent's knowledge of the Indian Patents Act (the law governing patents in India) and their ability to handle practical tasks like drafting patent applications and responding to objections from the patent office. The exam has two parts:
 - * **Paper I:** It tests the theoretical knowledge of the Patents Act and the rules for filing patent applications.
 - * **Paper II:** It tests practical skills such as drafting patent applications and responding to objections.
- ⇒ Once a candidate passes the exam, they can register as a patent agent with the Indian Patent Office. They are officially listed in a register of patent agents, which allows them to practice and represent clients in patent-related matters.

Duties of a Patent Agent:

- ⇒ One of the main tasks of a patent agent is to help inventors create and submit their patent applications. The application must clearly describe the invention, its purpose, and how it works. The patent agent also ensures that the claims (which define the scope of the invention's protection) are written clearly and accurately.
- ⇒ After submitting an application, the patent office may raise concerns or objections. Patent agents are responsible for answering these concerns. They can modify the application or provide additional information to overcome the objections and make sure the patent application gets approved.
- ⇒ Before filing a patent, patent agents often conduct a search to check if similar inventions already exist. This helps them figure out if the invention is truly new, which is one of the main criteria for getting a patent.
- ⇒ Once a patent is granted, patent agents help clients maintain it by making sure they pay necessary fees to keep the patent in force. If the fees are not paid on time, the patent could expire, and the protection will be lost.
- ⇒ If someone wants to use a patented invention, the patent agent can help by drafting agreements. These agreements allow others to use the patent in exchange for payment, royalties, or other benefits. The agent can also help transfer ownership of a patent from the inventor to another person or company.
- ⇒ While patent agents do not represent clients in court, they can help lawyers who handle patent-related lawsuits. They can provide technical expertise, analyse patents, and help prepare evidence for legal cases.

MODULE 3

1. What is the Evolution of Trademark Law in India?

Trademark law in India has changed over time to better protect brands and businesses. A trademark is something like a name, logo, or symbol that helps people recognize a business's products or services. The law has been updated to make sure businesses have stronger protection and to match global standards.

Evolution of trademark law in India:

⇒ Before Independence:	⇒ After Independence:
* In 1860, the Registration Act mentioned trademarks, but it wasn't very strong or complete. * In 1940, the Indian Trade Marks Act was created to protect trademarks, but it only helped	* After India became independent, it needed better laws for trademarks as business grew. In 1958, the Trade and Merchandise Marks Act was passed to improve trademark protection, but it still had problems.

if the trademark was registered. If it wasn't registered, it wasn't protected.	* India also joined international agreements like the Paris Convention in 1999 to protect trademarks across countries.
⇒ The Trade Marks Act, 1999: * The Trade Marks Act, 1999 was a big change. It brought India's trademark laws closer to the rest of the world. * It allowed new types of trademarks, like shapes, colours, and sounds, to be protected. * The law also introduced protection for well-known trademarks, which are very famous brands.	⇒ Changes to the Law: * In 2002, the law was changed to protect things like service marks and domain names (website names). * In 2010, new rules were added to protect collective marks (used by groups of people) and certification marks (used to show a product meets certain standards). * In 2019, the process for registering trademarks online was made easier and faster.

2. Why are Trademarks Important for Businesses and the Economy?

Trademarks are very important for businesses because they help people recognize and trust their products. They also protect businesses from others copying their brands and help grow the economy by encouraging fair competition.

- ⇒ Trademarks help businesses create a unique name or symbol that makes their products easy to recognize.
- ⇒ When people trust a brand to be good quality, they will keep buying from it, making the business stronger over time.
- ⇒ A strong trademark makes a business stand out from competitors, especially in crowded markets like food or clothing.
- ⇒ A trademark is like an asset for a business—it has value even though it's not something you can touch.
- ⇒ Famous trademarks can increase a business's value. Many businesses earn money by allowing others to use their trademark for a fee.
- ⇒ Trademark law stops other businesses from copying a brand's logo or name, which helps keep the brand's reputation safe.
- ⇒ Without trademark protection, customers could be tricked by look-alike products, which could harm the business.
- ⇒ Having a registered trademark makes sure that the money and effort a business spent building its brand are protected.

3. Why is Trademark Protection Important for Businesses?

Trademark protection is necessary to ensure that businesses can protect their brand identity, prevent imitation, and build consumer trust. Trademarks, like logos or names, help people identify a company's goods or services. Without protection, businesses may face difficulties like counterfeit products, market confusion, and unfair competition.

- ⇒ Trademarks help build trust by assuring customers of consistent quality and origin of products.
- ⇒ It prevents confusion by stopping competitors from copying a brand's logo, name, or design, which could mislead customers.
- ⇒ Strong trademark protection encourages businesses to keep creating new and unique products or services because they know their brand will be safe.
- ⇒ It safeguards the investment that businesses make in creating a brand and logo, ensuring they don't lose money to imitation.
- ⇒ It protects consumers from low-quality, unsafe counterfeit products that could harm them or damage their trust in a brand.
- ⇒ Trademarks help businesses expand globally by allowing them to protect their brand in different countries and markets.
- ⇒ Businesses can take legal action against anyone using their trademark without permission, ensuring they maintain control over their brand.

4. How Does Trademark Protection Benefit the Economy and Consumers?

Trademark protection plays a significant role in maintaining fair business practices, promoting economic growth, and safeguarding consumers from harmful products. It creates a stable environment where businesses can thrive and innovate while protecting consumers from fake or unsafe products.

- ⇒ It fosters a competitive and fair market by preventing businesses from copying each other's branding, which encourages innovation.
- ⇒ Trademarks are vital for small businesses to compete with larger companies and ensure that their products are protected from imitation.
- ⇒ It supports global trade by allowing businesses to protect their brands across countries and ensuring their reputation is maintained internationally.
- ⇒ By securing trademarks, businesses are more likely to expand and grow, which leads to more job opportunities and a stronger economy.
- ⇒ Trademark protection makes the market clearer for consumers by ensuring that products with a particular logo or name are genuine and of good quality.
- ⇒ It helps prevent market fraud, like false advertising, by ensuring that businesses can take action against dishonest competitors.
- ⇒ The reputation of well-known brands is protected, so consumers can continue trusting their products, and businesses can maintain their goodwill and value.

5. What are the Different Types of Trademarks?

Trademarks are unique symbols, words, or designs that businesses use to identify their goods or services. There are various kinds of trademarks, each serving a specific purpose to protect a company's identity.

Registered Trademarks: ⇒ A registered trademark is officially recorded with the government. ⇒ It gives the owner exclusive rights to use the trademark. ⇒ It provides legal protection against others using the same or similar mark. ⇒ The trademark owner can take legal action if someone uses the mark without permission. ⇒ The process of registering involves applying to the trademark office. ⇒ Registration makes it easier to prove ownership of the mark. ⇒ The trademark can be renewed every 10 years. ⇒ Once registered, the owner can sell or license the trademark to others. ⇒ The owner can use the ® symbol to show the mark is officially registered. ⇒ It strengthens the business's brand identity and market position.	Unregistered Trademarks: ⇒ An unregistered trademark has not gone through the formal registration process. ⇒ Even without registration, businesses can still protect their trademark under common law. ⇒ Protection is based on usage and the reputation of the mark. ⇒ The business must prove that the mark has become well-known over time. ⇒ Unregistered trademarks are harder to defend in legal cases. ⇒ It's difficult to stop others from using a similar mark without registration. ⇒ Owners can claim protection through the "passing off" doctrine, which means proving others are misleading consumers. ⇒ The trademark is only protected in areas where it's used and known. ⇒ Enforcement of unregistered trademarks can be time-consuming and costly. ⇒ The trademark owner has to prove that the mark causes confusion among consumers.
Conventional Trademarks: ⇒ Conventional trademarks are the most common type and include words, logos, and images. ⇒ Word marks are simple words, letters, or numbers that identify a brand. ⇒ Device marks are logos or symbols that represent a business.	Non-Conventional Trademarks: ⇒ Non-conventional trademarks go beyond logos and words. ⇒ They can include colours that are uniquely tied to a brand. ⇒ Some trademarks are based on distinctive sounds, like jingles or tunes.

⇒ Combination marks include both words and logos together. ⇒ Shape marks involve the unique shape of a product or its packaging. ⇒ Conventional trademarks are easy to understand and widely used in business. ⇒ They help businesses stand out by making their brand recognizable. ⇒ These marks are the most likely to be registered with the trademark office. ⇒ They are often used on products and in advertising to promote the brand. ⇒ Conventional trademarks provide clear protection against misuse by others.	⇒ Smell marks involve scents that make a product stand out, though they're rare. ⇒ Motion marks are trademarks that include a moving image or sequence of actions. ⇒ Hologram marks use 3D effects or holograms as a distinguishing feature. ⇒ These trademarks are unique and can help brands in highly competitive markets. ⇒ They often help businesses stand out in creative ways. ⇒ Non-conventional trademarks are harder to register and protect. ⇒ They require special legal considerations to prove they are distinctive enough to be trademarked.
Service Marks: ⇒ Service marks are like trademarks but for services instead of products. ⇒ They help identify the source of a service, such as a restaurant or hotel. ⇒ Just like regular trademarks, service marks can be registered. ⇒ Service marks ensure consumers know which company is providing the service. ⇒ They are often used by businesses like banks, delivery services, and hospitals. ⇒ Service marks help prevent confusion about which business is offering the service. ⇒ They protect a company's brand and reputation in the service industry. ⇒ Owners of service marks can take legal action against misuse. ⇒ Service marks are also used to promote the quality of services. ⇒ Examples include FedEx, McDonald's, and American Express.	Collective Marks: ⇒ Collective marks are used by a group or organization to represent a shared quality. ⇒ The collective mark is owned by the organization, not individual members. ⇒ It helps to show that products or services come from a group with common features. ⇒ The mark can only be used by those who meet specific standards set by the organization. ⇒ It can help smaller businesses gain credibility by showing they meet certain standards. ⇒ Examples include the Wool mark, which indicates a product is made from wool. ⇒ It helps consumers identify products or services that come from a trusted group. ⇒ Collective marks promote fairness and quality in the market. ⇒ They are often used by associations or cooperatives. ⇒ The use of the mark is carefully controlled by the organization that owns it.
Certification Marks: ⇒ Certification marks show that a product or service meets certain standards. ⇒ The certifying authority does not use the mark itself but allows others who meet the standards to use it. ⇒ These marks assure consumers that a product or service is high quality or meets specific guidelines. ⇒ Certification marks are used in industries like food, safety, and health. ⇒ Examples include the "BIS" mark, showing a product meets Indian quality standards. ⇒ These marks are usually associated with certifications like "organic" or "eco-friendly." ⇒ They help businesses show they follow industry regulations. ⇒ Certification marks make it easier for consumers to find trusted products. ⇒ They are valuable for businesses wanting to prove their commitment to quality.	Well-Known Trademarks: ⇒ Well-known trademarks are highly recognized by consumers worldwide. ⇒ These trademarks have strong brand reputation and goodwill. ⇒ They enjoy extra protection, even if they're not registered in every country. ⇒ Well-known trademarks are protected from being copied or used by others in different markets. ⇒ Examples include Coca-Cola, Nike, and Google. ⇒ The legal protection for well-known trademarks is stronger than for regular trademarks. ⇒ These trademarks are valuable assets for companies and help boost their reputation. ⇒ They are protected from misuse, even if used in unrelated industries. ⇒ Well-known trademarks are more likely to be protected internationally.

⇒ Certification marks are especially important in global markets where standards are key.

⇒ Their value comes from the trust and recognition they've built over time.

6. What is the procedure for registering a trademark in India?

The process of registering a trademark in India is designed to protect the brand identity of individuals or businesses. It helps in securing legal rights and exclusive use of the mark. The registration involves a series of steps, starting from searching for similar marks to getting the final registration certificate.

Procedure for trademark registration process in India:

- ⇒ A preliminary search should be done to check if a similar or identical mark is already registered.
- ⇒ This search can be done on the IP India website or by a professional trademark agent.
- ⇒ It helps avoid problems or rejection due to existing trademarks.
- ⇒ Once the search is clear, the application for trademark registration can be filed.
- ⇒ The application is filed using Form TM-A, which can be submitted online or at the trademark office.
- ⇒ The applicant must provide personal/business details, a clear image or description of the trademark, the class of goods or services, and the date of first use.
- ⇒ The fee depends on the type of applicant and number of classes.
- ⇒ After filing, the application is examined by a trademark examiner.
- ⇒ The examiner checks if the mark follows all legal rules and is not similar to any existing marks.
- ⇒ If everything is fine, the application is accepted.
- ⇒ If there are issues, the examiner issues an Examination Report pointing out the objections.
- ⇒ If there are objections, the applicant has to respond by filing a reply using Form TM-O.
- ⇒ If needed, a hearing is arranged where the applicant can explain their case.
- ⇒ If the response or hearing satisfies the examiner, the application is accepted and moved to the next stage.
- ⇒ The accepted application is published in the Trade Marks Journal.
- ⇒ This is done to allow the public to see the trademark and raise objections, if any.
- ⇒ Anyone can file an opposition within four months if they think the mark is similar to theirs.
- ⇒ If no one objects, or if the objection is resolved, the application moves forward.
- ⇒ If no opposition is received, or the opposition is dismissed, the trademark is registered.
- ⇒ The registration certificate is issued by the trademark office.
- ⇒ The trademark is valid for 10 years from the date of application and gives exclusive rights to the owner.

7. What happens after a trademark is registered and how can it be maintained?

After a trademark is successfully registered in India, the owner gets special legal rights to use the mark. But to keep those rights, certain actions must be taken. These include renewing the trademark regularly and making sure it is actively used.

- ⇒ Once registered, the trademark is valid for 10 years from the date of application.
- ⇒ The owner gets the exclusive right to use the trademark for the goods or services mentioned in the registration.
- ⇒ This helps prevent others from using similar marks that could confuse customers.
- ⇒ The trademark must be renewed every 10 years to keep it active.
- ⇒ Renewal can be done by filing Form TM-R and paying the required fee.
- ⇒ The renewal should be done before the expiry date, but there is also a 6-month grace period with a late fee.
- ⇒ If the trademark is not renewed, it may be removed from the trademark register.
- ⇒ The owner would then lose all legal protection over that mark.
- ⇒ A trademark must be used regularly in business.
- ⇒ If the mark is not used for 5 continuous years, it can be cancelled for non-use.
- ⇒ The use must be genuine, meaning it should be actually used in selling or promoting goods or services.
- ⇒ A trademark can be applied for in more than one class if the business covers different types of products or services.
- ⇒ Fees must be paid separately for each class included in the application.

- ⇒ If a business wants to register its trademark in multiple countries, it can use the Madrid Protocol.
- ⇒ This allows for international registration through a single application.
- ⇒ The trademark owner can also sell (assign) or license the trademark to others.
- ⇒ These rights are only available if the trademark is properly registered.

What are the absolute grounds for refusal of trademark registration in India?

In India, certain trademarks are not allowed to be registered because they fail to meet basic legal requirements. These are called absolute grounds for refusal, and they are mainly related to the nature or characteristics of the trademark itself. These rules are given in Section 9 of the Trade Marks Act, 1999. If a trademark doesn't meet these rules, it cannot be registered, no matter who applies or whether there is any existing trademark that is similar.

Grounds for refusal:

- ⇒ If the trademark is not distinctive and cannot help the public identify a specific product or service from one company and distinguish it from others.
- ⇒ If the trademark only describes the product or service, like mentioning its quality, quantity, purpose, or other features. For example, a mark like "Tasty" for food products or "Green Tea" for tea would not be allowed.
- ⇒ If the trademark uses general or common terms like "Laptop" for computer products, which are generic and commonly used names.
- ⇒ If the trademark is misleading or deceptive about the nature, quality, or place of origin of the goods. For example, calling something "Paris Beauty" when it is not from Paris can mislead customers.
- ⇒ If the trademark is offensive or goes against public morality or order. This includes marks that use bad language, show disrespect to religions or communities, or promote hate.
- ⇒ If the trademark includes national symbols like the Indian flag, national emblem, or names of international organizations. These are protected and cannot be used in private trademarks.
- ⇒ If the trademark is obscene, uses vulgar words or pictures, or contains anything that hurts public decency.
- ⇒ If the trademark only contains a geographical name, like a city or region, unless it has become well-known due to its use. For example, "Mumbai Spices" could be rejected unless it is already widely recognized.

Exceptions:

- ⇒ If a trademark has become distinctive over time because it has been used for a long period and the public now connects the mark with a particular company or brand.
- ⇒ If the applicant can show proof that even a descriptive or geographical term has become strongly associated with their goods or services, the trademark may still be allowed.

8. What are the relative grounds for refusal of trademark registration in India?

Relative grounds for refusal focus on whether the trademark you are applying for is similar or identical to an already existing trademark. The main aim is to avoid confusion in the minds of consumers and to protect the rights of businesses that are already using similar marks. These rules are found in Section 11 of the Trade Marks Act, 1999.

Grounds for refusal:

- ⇒ If the trademark is the same or very similar to another trademark that is already registered or well-known, especially if it is for similar products or services. For example, trying to register "Apple" for electronics will be refused because that is already a famous brand.
- ⇒ If the use of the new trademark would cause confusion or make people believe that the product or service comes from an already existing brand. Even a mark that looks or sounds similar can be confusing. For example, "Cok-Cola" may be confused with "Coca-Cola".

- ⇒ If the trademark is similar to a well-known trademark, it can be refused even if it is for completely different products. For example, "Niko" for jewellery might be rejected because it is too similar to "Nike", which is a well-known brand.
- ⇒ If the trademark tries to use the name or identity of a famous person, whether living or dead, especially in a way that could mislead the public. For example, "Shahrukh Khanna" for beauty products could be refused because it may confuse people into thinking it is related to the actor Shahrukh Khan.
- ⇒ If the trademark uses geographical names that are common and have no special meaning connected to the product, it may be refused. For example, "Paris Shirts" could be rejected if it is just using the city name without any real connection or uniqueness.
- ⇒ If the trademark is harmful to public interest or might mislead people in general. For example, using a mark that gives false information about a product's quality or origin, or using negative or offensive names, may be refused.

9. What are the grounds on which a trademark application can be opposed under the Trade Marks Act, 1999?

When someone applies to register a trademark, the law allows other people or companies to oppose it if they believe the new trademark could harm their rights or create confusion in the market. These objections are called "grounds for opposition" and they help make sure only fair and unique trademarks get registered.

Grounds for opposition include:

- ⇒ If the trademark is identical or very similar to an already registered trademark or a pending application.
- ⇒ If the trademark is likely to confuse people because it looks or sounds like another brand that is already in use.
- ⇒ If the trademark just describes the product or service and does not help to identify the brand (for example, "Fresh Milk" for dairy products).
- ⇒ If the trademark is offensive, immoral, or against public values and beliefs.
- ⇒ If the trademark is a general word commonly used for certain products, which everyone should be able to use (for example, "Bread" for baked goods).
- ⇒ If the trademark is misleading about the product's quality, origin, or features, and could trick customers.
- ⇒ If the trademark is similar to a well-known mark, even if the products are different, and this could damage the reputation of the famous brand.
- ⇒ If the person applying for the trademark is doing it in bad faith, such as trying to copy someone else's success or reputation.
- ⇒ If the application includes false or misleading claims, like pretending the product is from a special place or has certain qualities it doesn't really have.

10. What is the procedure followed when someone opposes a trademark application in India?

After a trademark application is published in the Trade Marks Journal, anyone who thinks the trademark should not be registered has the right to oppose it. The opposition process follows a clear legal procedure under the Trade Marks Act, 1999.

Opposition procedure:

- ⇒ The trademark application is published in the Trade Marks Journal, which is open to the public to view.
- ⇒ If anyone wants to oppose the trademark, they must file a "Notice of Opposition" within four months from the date the mark was published.
- ⇒ The person who applied for the trademark then has two months to reply by filing a "counterstatement" explaining why their mark should be registered.
- ⇒ Both sides can submit evidence to support their claims. The opponent submits first, and the applicant can respond with their own documents or statements.
- ⇒ If needed, a hearing is scheduled where both parties can present their arguments in front of the Registrar.
- ⇒ After considering all the documents and hearing both sides, the Registrar will give a decision.
- ⇒ If the Registrar agrees with the opponent, the trademark will not be registered.
- ⇒ If the Registrar finds no strong reason to reject the application, the trademark will move forward and get registered.

- ⇒ If either party is unhappy with the Registrar's decision, they can file an appeal with the Intellectual Property Appellate Board.
- ⇒ The opposition can also be withdrawn by the opponent, or both parties can settle the matter before a final decision is made.

11. What rights does the proprietor of a registered trademark have under the Trade Marks Act, 1999?

When a person or company registers a trademark in India, they receive several legal rights that help them protect their brand. These rights allow the owner to use the trademark freely, stop others from using it without permission, and maintain the reputation and identity of their brand.

Rights of the proprietor of a registered trademark:

- ⇒ The owner has the exclusive right to use the trademark for the goods or services for which it is registered.
- ⇒ They can stop others from using the same or similar mark if it might confuse customers.
- ⇒ They can assign (transfer) the ownership of the trademark to someone else or license it for use under agreed terms.
- ⇒ They can take legal action if someone uses their trademark without permission or tries to copy it.
- ⇒ They can ask the court for an injunction to stop the misuse and can also claim damages for losses.
- ⇒ If the trademark is well-known, the owner can stop others from using the mark even on unrelated goods or services.
- ⇒ They have the right to register the trademark in other countries using international agreements like the Madrid Protocol or the Paris Convention.
- ⇒ They can use the TM symbol to show a claim over the trademark, and once registered, they can use the ® symbol as proof of registration.
- ⇒ They can renew the trademark every ten years and continue its protection for an unlimited time.
- ⇒ They can stop others from registering or using similar marks that may confuse customers.
- ⇒ If the trademark is not registered but is well-known in the market, the owner can still take action under the law of passing off.
- ⇒ They have the right to challenge anyone who tries to cancel or revoke their trademark.
- ⇒ They can defend their trademark if someone claims it was wrongly registered or not used properly.

12. Can a trademark owner take legal action if someone misuses their trademark, and how can they protect it?

Yes, the owner of a trademark can take legal action if someone uses their trademark without permission or tries to copy it. The law gives them strong protection to stop misuse and maintain the value of their brand.

- ⇒ If someone uses a similar mark on the same or related goods, the owner can file a case for trademark infringement.
- ⇒ They can ask the court for an order (injunction) to stop the other party from using the mark.
- ⇒ They can ask for compensation or damages for any harm caused to their business or brand reputation.
- ⇒ They can also request customs authorities to stop the import of goods that illegally use their trademark.
- ⇒ If the trademark is well-known, the owner can prevent its use even on unrelated goods if it affects the brand's reputation.
- ⇒ They can stop others from registering similar domain names, business names, or social media handles.
- ⇒ If the trademark is not yet registered but has gained reputation, they can file a passing off case to protect it.
- ⇒ They can oppose the registration of similar marks by others by filing an objection.
- ⇒ If someone tries to cancel or revoke the trademark, the owner can fight the claim and prove that their trademark is valid and in use.
- ⇒ They can also take steps to renew their trademark every ten years and keep it active.
- ⇒ Licensing agreements must be properly written to protect the trademark when others are allowed to use it.
- ⇒ The owner must keep a watch on the market to spot any misuse or infringement and take timely action.

13. What is assignment of a trademark and how does it work?

Assignment of a trademark means transferring the ownership of a trademark from one person to another. This process is done through a written agreement, and the new owner receives all rights over the trademark. Assignment is usually permanent, and after it is done, the original owner does not keep any rights unless the agreement says so.

- ⇒ Assignment means complete or partial transfer of trademark rights from one person (assignor) to another (assignee).
- ⇒ The transfer can be for all products and services or limited to specific goods, areas, or time periods.
- ⇒ A written agreement is necessary, where both parties clearly mention the terms of the assignment.
- ⇒ The agreement must be submitted to the Trademark Registry so that it becomes legally valid.
- ⇒ After registration, the new owner gets full legal rights over the trademark and can use it or take legal action if someone misuses it.
- ⇒ Assignment can also be partial, for example, giving rights for only a specific region or type of product.
- ⇒ Once the trademark is assigned, the original owner cannot take the rights back unless the agreement specifically allows it.
- ⇒ The assignee can file cases for infringement if someone uses the trademark without permission.
- ⇒ This process helps businesses buy or sell trademarks like other valuable property.
- ⇒ Assignment is useful when a business is sold or merged, and the new company wants to own the trademark.

14. What is licensing of a trademark and how does it work?

Licensing of a trademark means giving permission to another person or company to use your trademark, while you still remain the owner of that trademark. It is like letting someone borrow your brand name for their business, but only under your rules and conditions.

The trademark owner is called the licensor, and the person or company using the trademark is called the licensee. The licensor and licensee make a written agreement that explains how the trademark will be used.

- ⇒ The trademark owner does not give up ownership, they only allow others to use it for a specific time or purpose.
- ⇒ The license can be exclusive (only one licensee can use it) or non-exclusive (many people can use it).
- ⇒ The license can be limited to a particular area or for certain products or services.
- ⇒ There must be a written agreement between the licensor and licensee. This agreement should mention the duration, rules of use, payments, and other important terms.
- ⇒ The licensor can ask the licensee to pay a royalty (money) for using the trademark. This can be a fixed amount or a percentage of sales.
- ⇒ The licensor has the right to check how the licensee is using the trademark. This helps in making sure the quality of products or services stays good.
- ⇒ If the licensee misuses the trademark or breaks the agreement, the licensor can cancel the license.
- ⇒ The license can be registered with the Trademark Registry, but it is not compulsory. However, registration gives better legal protection.
- ⇒ Licensing is useful when a brand wants to expand or grow by allowing others to use their name, like in franchises or partnerships.

15. What is the difference between Assignment and Licensing of Trademark?

Assignment of Trademark	Licensing of Trademark
⇒ The ownership of the trademark is fully or partly transferred to another person.	⇒ The ownership of the trademark remains with the original owner. Only permission to use is given.
⇒ After assignment, the new person (assignee) becomes the owner of the trademark.	⇒ The other person (licensee) is only allowed to use the trademark but does not become the owner.
⇒ It is usually a permanent transfer of rights.	⇒ It is usually a temporary arrangement.
⇒ Rights do not return to the original owner unless mentioned in the agreement.	⇒ Rights always stay with the original owner.

⇒ A written agreement is compulsory and it must be registered with the Trademark Registry.	⇒ A written agreement is needed, but registration with the Trademark Registry is optional.
⇒ The assignee can use the trademark and also take legal action for infringement.	⇒ The licensee can only use the trademark as per the agreement. The owner can take legal action if needed.
⇒ The transfer can include all products, specific products, or certain areas.	⇒ The use can be limited to certain products, areas, or time periods.
⇒ No control is usually kept by the original owner after assignment.	⇒ The owner can control how the trademark is used to protect its quality and reputation.
⇒ Example: A company sells its brand name to another company, and that company becomes the new owner of the brand.	⇒ Example: A restaurant owner gives permission to another person to use the same brand name in a different city, but still keeps ownership of the brand.

16. What is Trademark Infringement and how does it work?

Trademark infringement happens when someone uses a registered trademark or a similar mark without the owner's permission. This use must be likely to confuse people about the source of the goods or services. It is only applicable when the trademark is officially registered under the law.

- ⇒ Trademark infringement only applies to registered trademarks.
- ⇒ It happens when someone uses a mark that is the same or very similar to a registered trademark.
- ⇒ The goods or services involved must be the same or related to the registered trademark.
- ⇒ The use of the mark should be such that it might confuse customers.
- ⇒ The registered owner can file a case in court if someone infringes their trademark.
- ⇒ The owner must show that their trademark is registered and that the other person's mark is similar.
- ⇒ The court can stop the infringer from using the mark through an injunction.
- ⇒ The owner can get money as compensation for the loss caused by the infringement.
- ⇒ The court can ask the infringer to give up the profits made using the trademark.
- ⇒ The court can order the destruction of the infringing goods.
- ⇒ In the case of Cadbury India Ltd. v. Neeraj Food Products Ltd., the court said that using a similar logo to Cadbury's registered mark was an infringement. The court stopped the use and ordered the destruction of the fake goods.

17. What is Passing Off and how is it different from Infringement?

Passing off is when someone tries to sell their goods or services by pretending they are related to another business. This can happen even if the original business doesn't have a registered trademark. It protects the name, logo, or style that the public connects with the original business.

- ⇒ Passing off applies even if the trademark is not registered.
- ⇒ It protects the goodwill and reputation of a brand.
- ⇒ It happens when someone copies a name, logo, packaging, or style that looks like another business's brand.
- ⇒ The aim is to trick customers into thinking both businesses are connected.
- ⇒ The original business must show that people know and trust their brand.
- ⇒ The copied branding must be likely to confuse the public.
- ⇒ The original business must also show that it could suffer harm, like losing customers or sales.
- ⇒ The person who is harmed can go to court and ask for an injunction to stop the other person from using the name or design.
- ⇒ The court can also award money for damages or order the profits to be paid.
- ⇒ The court may ask for the copied goods to be destroyed.
- ⇒ In Puma AG v. Dinesh Kumar, the court found that the use of a similar logo to Puma's brand was passing off. Even though Puma had not registered the mark in India at that time, the court stopped the other party from using the similar mark.

18. What is the difference between Infringement and Passing Off?

Infringement	Passing Off
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Happens only when a trademark is registered under the Trade Marks Act, 1999	Can happen even if the trademark is not registered
The owner has to prove that the mark is registered	The owner has to prove that the public knows and trusts their brand (goodwill)
Based on legal rights given by trademark registration	Based on the reputation built over time by using the mark in the market
The other person must be using a mark that is identical or very similar to the registered one	The other person must be copying the look, name, or style that confuses customers
Focus is on whether the registered rights have been violated	Focus is on whether the public is being misled and the original business is harmed
Owner can file a case in court under Section 29 of the Trade Marks Act	Owner can file a civil suit under common law for protection of their business reputation
Remedies include stopping the use (injunction), getting compensation (damages), or asking for profits made by the wrongdoer	Remedies are similar: court can stop the use, award compensation, or ask for profits made by copying
Example: In Cadbury India Ltd. v. Neeraj Food Products Ltd., the court said using a similar mark to Cadbury's registered logo was infringement and ordered the goods to be destroyed	Example: In Puma AG v. Dinesh Kumar, even though Puma's mark was not registered in India, the court stopped the other party from using a similar logo because it was passing off

19. What are the remedies and defences available for trademark infringement?

When a registered trademark is infringed, the trademark owner can seek legal remedies to protect their rights and prevent further harm. The remedies and defences for infringement aim to address the unauthorized use of the trademark and provide compensation for the damage caused.

Remedies for Infringement:	Defences for Infringement:
⇒ The court can issue an injunction to stop the defendant from using the infringing trademark. ⇒ The trademark owner can be awarded damages to compensate for the loss caused by the infringement. ⇒ The defendant may be required to pay the profits made from using the infringing trademark. ⇒ The court can order the destruction or delivery of the infringing goods to prevent further distribution. ⇒ In some cases, the court may publish the judgment to notify the public of the infringement.	⇒ The defendant may argue that the mark they are using is not identical or similar enough to cause confusion. ⇒ The defendant can claim that there is no likelihood of confusion in the marketplace. ⇒ The defendant may argue that they were the first to use the mark and have prior rights. ⇒ The defendant might challenge the validity of the plaintiff's trademark if it was wrongly registered. ⇒ The defendant can use the fair use defence, claiming their use was legitimate or non-commercial.

20. What are the remedies and defences available for passing off?

In a passing off case, the remedy focuses on protecting the goodwill and reputation of the business, even if the trademark is not registered. Passing off occurs when someone misrepresents their goods or services as those of another, leading to consumer confusion.

Remedies for Passing Off:	Defences for Passing Off:
⇒ Similar to trademark infringement, the court can issue an injunction to prevent the defendant from continuing to mislead consumers. ⇒ The claimant can be awarded damages for the loss caused by the misrepresentation.	⇒ The defendant can argue that the claimant does not have enough goodwill or reputation in the market. ⇒ The defendant may argue that no misrepresentation has occurred, meaning their actions did not confuse consumers.

⇒ The defendant may be ordered to hand over the profits made from misleading consumers. ⇒ The court can order the destruction or delivery of goods that misrepresent the claimant's products. ⇒ In some cases, the court may require the defendant to issue corrective advertisements to restore the claimant's reputation.	⇒ The defendant can claim that their actions did not cause any real damage to the claimant's business or reputation. ⇒ The defendant may argue that their use of the mark was purely descriptive or nominative, not intended to deceive. ⇒ Similar to infringement, the defendant might claim prior use of the mark, arguing that they were using it before the claimant.
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MODULE 4

1. How did copyright law evolve in India?

The evolution of copyright law in India reflects the changing needs of society, advancements in technology, and international agreements. Over time, India's legal framework has adapted to ensure creators' rights are protected, while also balancing public access to creative works.

Pre-Independence Period: ⇒ Before India had its own specific copyright law, the British Copyright Act of 1842 governed copyright matters in India. ⇒ In 1911, the British Copyright Act provided protection to literary and artistic works like books, music, and films, but it was not comprehensive and needed updates to suit the growing demands of the country.	Post-Independence Period: ⇒ After India's independence in 1947, there was a need to modernize copyright law to align with international standards and protect Indian creators. ⇒ The Indian Copyright Act, 1957 was enacted to meet this need and bring India in line with global norms, especially the Berne Convention for the Protection of Literary and Artistic Works, 1886.
Amendments to the Copyright Act: ⇒ The Copyright (Amendment) Act, 1983 expanded protection to include films and sound recordings and introduced provisions to tackle piracy. ⇒ In 1994, the Copyright (Amendment) Act aligned Indian law with the TRIPS Agreement, adding protection for computer programs and extending protection periods. ⇒ The 2012 amendment addressed digital media and internet challenges, introduced digital rights protection, and allowed educational institutions limited use of copyrighted materials. ⇒ The 2019 amendment focused on improving copyright enforcement and protecting authors' moral rights.	

2. How has international law influenced India's copyright law?

International agreements and treaties have played a major role in shaping and improving copyright law in India. These treaties ensure that India follows global standards in protecting the rights of creators, authors, and performers, and helps Indian works to be recognized and protected worldwide. As technology has advanced, especially with the rise of the internet and digital media, international law has influenced India's copyright law to keep it up-to-date.

Berne Convention for the Protection of Literary and Artistic Works (1886): ⇒ India joined the Berne Convention in 1928, which was a significant step towards international copyright protection.	TRIPS Agreement (1994): ⇒ TRIPS, or the Agreement on Trade-Related Aspects of Intellectual Property Rights, was part of India's commitment when it became a member of the World Trade Organization (WTO) in 1995.
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⇒ The convention's core idea is that once a country signs it, the copyright laws of that country must recognize and protect the works of authors from other member countries, just as it would for local authors. ⇒ Principles of the Berne Convention: * National Treatment: This ensures that works from other countries are treated the same as local works, meaning Indian creators can seek protection for their works in other member countries, and vice versa. * Minimum Protection Standards: The Berne Convention sets the minimum duration and scope for copyright protection, ensuring that member countries provide a basic level of protection to creators.	⇒ TRIPS raised the level of copyright protection globally, and India had to adjust its laws to meet these higher standards. ⇒ Protection for Computer Programs and Databases: This was crucial as it recognized the importance of digital content and software in the modern world. ⇒ Minimum Term of Protection: TRIPS set the minimum term for protecting literary, dramatic, and musical works at 50 years after the death of the author. India extended this to 60 years through amendments to its Copyright Act in 1994. ⇒ Border Enforcement Measures: TRIPS introduced measures to prevent the import of pirated goods, which helped strengthen India's copyright enforcement mechanisms.
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WIPO Copyright Treaty (1996):

- ⇒ India is also a member of the WIPO Copyright Treaty, which was created by the World Intellectual Property Organization (WIPO) to address new challenges in the digital age.
- ⇒ This treaty focuses on the protection of works in digital formats, ensuring that online content, such as websites, e-books, music, and software, is protected by copyright law.
- ⇒ The treaty helps in enforcing copyright over digital works and acknowledges the rise of the internet as a major factor in how creative content is shared and used today.

3. What is the Nature and Scope of Copyright?

Nature of copyright	Scope of copyright
The nature of copyright is about the special rights given to creators of original works, like books, music, movies, and art. These rights let creators control how their works are used, like who can copy, perform, or sell them. Copyright protects how ideas are shown, but not the ideas themselves. ⇒ Copyright gives creators the right to decide how others can use their work. ⇒ It only protects the way an idea is expressed (for example, a story), not the idea itself (like a detective story idea). ⇒ Copyright usually works in the country where it's granted, but international rules make sure your work is protected in other countries too. ⇒ Once you create something original and put it in a form, like writing or painting, it is automatically protected by copyright. ⇒ Copyright also gives creators moral rights, like the right to be credited for their work and to stop others from changing it in ways that could harm their reputation.	The scope of copyright explains what kinds of works are protected, how long they are protected, what rights creators get, and what limits there are on those rights. It helps to know what is and isn't protected by copyright law. ⇒ Copyright in India covers many types of works, like books, music, films, art, computer programs, and even building designs. ⇒ How long copyright lasts depends on the type of work. For most works, it lasts for the author's lifetime plus 60 years. For movies and sound recordings, it lasts 60 years from when they were first published. ⇒ Copyright gives creators rights like being able to copy their work, perform it in public, sell it, change it, and share it online. ⇒ There are some rules that allow others to use copyrighted work without permission. For example, people can use it for research, teaching, or criticism without paying the creator. ⇒ In some cases, the government can give someone else the right to use a work if the creator isn't making it available to the public.

4. What is the term of copyright, and how long does it last?

The term of copyright is the length of time during which the creator of a work has exclusive rights to control how their work is used. These rights allow the author to decide who can copy, sell, perform, or distribute their work. After this period ends, the work enters the "public domain." This means anyone can use the work without asking for permission or paying for it. The length of the copyright term can depend on several factors, such as the type of work and whether the author is alive or dead.

- ⇒ **Literary, dramatic, musical, and artistic works:** Copyright lasts for the lifetime of the author plus 60 years. This means that the creator has the exclusive rights to the work during their life and for 60 years after they pass away.
- ⇒ **Collaborative works:** If a work is created by more than one person, the copyright lasts for 60 years after the death of the last surviving author. This ensures that the work remains protected until the last person who contributed to it has passed away.
- ⇒ **Films and sound recordings:** Copyright for films and sound recordings (like music albums) lasts for 60 years from the year the work is first published. This term does not depend on the life of the creator. So, for example, if a film is released in 2020, its copyright will last until 2080, even if the director or actors are no longer alive.
- ⇒ **Posthumous works:** If a work is published after the creator's death, the copyright lasts for 60 years from the date it is first made available to the public. So, if an author dies in 1960, and their book is published posthumously in 1965, the copyright will last for 60 years from 1965, not from the author's death.

5. Are there any special rules for the duration of copyright?

Yes, there are some special cases where the rules for how long copyright lasts are different from the general rules. These rules apply to works created by anonymous authors, employees, or posthumously published works.

- ⇒ **Anonymous and pseudonymous works:** If the creator's name is not known, or they use a fake name (pseudonym), the copyright lasts for 60 years from the year the work is first published. But if later the creator's real name is revealed, then the copyright is calculated based on the author's death, just like any other work. For example, if a book is published under a fake name in 2020, and later, in 2025, the author is discovered, the copyright will last for 60 years from the author's death.
- ⇒ **Works made for hire or by employees:** If a work is created as part of someone's job (called a "work for hire"), the copyright lasts for 60 years from the year it's first published. This rule applies even if the creator is known. If the creator is not known, then the copyright lasts for 60 years from the publication date. For example, if a company hires an artist to create a painting, the copyright of that painting lasts for 60 years from the year it is published, not from the artist's life.
- ⇒ **Posthumous publication of unpublished works:** Sometimes, a work may not be published until after the author has passed away. In these cases, the copyright lasts for 60 years from the year it is published, not from the author's death. For example, if an author dies in 1960, but their book is published in 1965, the copyright will last for 60 years from 1965, even though the author is no longer alive.
- ⇒ **Derivative works:** A derivative work is a new creation based on an existing work. For example, a translation, an adaptation, or a modified version of the original work. The copyright for a derivative work lasts for the lifetime of the person who created the new version, plus 60 years. For example, if a writer translates a famous novel into another language, the copyright for that translation lasts for 60 years after the translator's death, not the original author's death.
- ⇒ **International conventions and copyright term:** India is part of international agreements, such as the Berne Convention, that set the minimum length for copyright protection to 50 years after the author's death. However, India has chosen to extend the copyright term to 60 years. This is beneficial because it gives creators more time to control how their works are used and to earn from them.

6. What are the different types of works in which copyright subsists under the Copyright Act, 1957?

Under the Copyright Act, 1957, certain types of creative works are protected by copyright. This means that the creators of these works have exclusive rights to use, distribute, and control how their works are used. The law covers various types of works that are original and creative. These works can include written materials,

music, art, films, and sound recordings. Each type of work has specific rules for copyright protection, ensuring that creators can benefit from their efforts.

Literary Works under the Copyright Act, 1957: Literary works are a category of creative works that are expressed through written words or any form of writing. The Copyright Act, 1957 recognizes literary works as works of creativity that have a distinct expression. ⇒ Literary works include books, novels, essays, and academic papers. ⇒ Computer programs, software code, and algorithms are also considered literary works because they are written and expressed in code. ⇒ Databases, when they are arranged or selected in a creative and original way, can be protected as literary works. ⇒ Translations of a literary work from one language to another are also protected as original works. ⇒ The protection for literary works lasts for the life of the author plus 60 years. This means the author has control over the work during their life, and even after death, their heirs retain the rights for 60 more years.	Dramatic Works under the Copyright Act, 1957: Dramatic works are those works that tell a story through actions, dialogues, and performances. They are often meant to be performed, such as plays or films. ⇒ Plays, scripts, and screenplays are examples of dramatic works, whether written for the theatre, television, or film. ⇒ Choreographed works like dances (ballets, modern dances) are also considered dramatic works if they are structured in a way that tells a story and are intended to be performed. ⇒ Musical compositions that are written for a dramatic performance, such as an opera or musical theatre, are included in dramatic works. ⇒ The copyright protection for dramatic works lasts for the life of the author plus 60 years. If more than one person contributes to the work, the protection lasts for the life of the last surviving author.
Musical Works and Artistic Works under the Copyright Act, 1957: Musical works and artistic works are creative expressions that are protected under copyright for their originality and creativity. ⇒ Musical Works: These include compositions of music such as symphonies, operas, hymns, and melodies. Lyrics that are written for a musical piece also fall under this category. ⇒ Artistic Works: These include visual works such as paintings, sculptures, drawings, photographs, and architectural designs. Works of applied art, like fashion designs and graphic designs, are also protected if they are original. ⇒ Even musical arrangements that add new, creative elements to an existing piece of music are protected. ⇒ The copyright for both musical and artistic works lasts for the life of the creator plus 60 years, allowing the creator or their heirs to control the use of the work during this period.	Sound Recordings under the Copyright Act, 1957: Sound recordings refer to fixed recordings of sound, including music, speech, or any other audio content. These recordings are protected under copyright law as original works of authorship. ⇒ Musical recordings: These are recordings of music, whether it's a song, symphony, or any other musical performance. ⇒ Spoken word recordings: This includes things like podcasts, radio programs, speeches, and audiobooks. ⇒ Other audio content: Sound recordings can also include environmental sounds, sound effects, or any other recorded audio that is original and fixed in a tangible form. ⇒ The copyright for sound recordings lasts for 60 years from the year of its first publication. This protection is separate from the copyright in the underlying musical composition.
Cinematograph Films under the Copyright Act, 1957: Cinematograph films refer to sequences of visual images that are capable of being shown as moving pictures, with or without sound. These works are widely protected under the Copyright Act for their creative expression in visual and audio forms. ⇒ Movies and Films: Full-length films, short films, documentaries, and animated films are all covered under this category. ⇒ Television Programs: Any moving images shown on television, whether for fiction or non-fiction purposes, are considered cinematograph films. ⇒ Digital Content: Web series, YouTube videos, and other online video content also fall under cinematograph films due to the rise of digital media.	

- ⇒ The copyright for cinematograph films lasts for 60 years from the year of first publication, irrespective of the life of the creators or contributors. This term of protection is different from other works, where copyright is based on the author's life.

7. What are Neighbouring Rights and how do they protect Performers, Broadcasting Organizations, and Producers of Phonograms?

Neighbouring rights, also known as related rights, are a form of protection given to people and organizations that help bring creative works to the public but are not the original creators of those works. These rights are especially important for performers, broadcasters, and producers of phonograms (sound recordings) because they play a key role in the creation, distribution, and commercialization of artistic works. While these individuals or organizations may not create the original content, they contribute significantly to its production and sharing. Neighbouring rights ensure that performers, broadcasters, and producers are compensated and have control over how their contributions are used.

- **Performers' Rights:** Performers' rights are a type of neighbouring rights that protect individuals such as actors, musicians, singers, dancers, and other live performers. These rights ensure that performers are compensated for the use of their performances, even though they may not be the creators of the original works.
 - ⇒ Performers have the right to be identified as the performer of the work.
 - ⇒ They can object to any distortion or modification of their performance that might harm their honour or reputation.
 - ⇒ Performers have the right to control how their performance is recorded, reproduced, and distributed.
 - ⇒ They can authorize or prohibit the recording of their performances in various formats, such as CDs or digital media.
 - ⇒ The economic rights of a performer last for 50 years from the year of the performance.
 - ⇒ Performers have moral rights that last even after their economic rights expire.
 - ⇒ A singer can control the sale of a song they recorded.
 - ⇒ An actor can control how their performance in a movie is used or distributed.
 - ⇒ Performers can prevent others from using their recorded performances without their permission.
 - ⇒ These rights protect the personal and financial interests of performers and ensure they benefit from their work.
- **Rights of Broadcasting Organizations:** Broadcasting organizations, like TV and radio stations, are granted specific neighbouring rights to protect their investments in creating and broadcasting programs. These rights ensure that broadcasters can control how their content is used and distributed.
 - ⇒ Broadcasting organizations can prevent unauthorized reproductions of their broadcasts.
 - ⇒ They can control the retransmission of their broadcasts through cable, satellite, or the internet.
 - ⇒ Broadcast organizations have the right to prohibit the recording of their broadcasts.
 - ⇒ They can control the rental and lending of recordings of their broadcasts.
 - ⇒ Broadcasting rights allow organizations to control who can distribute or rebroadcast their programs.
 - ⇒ The protection for broadcasting organizations lasts for 25 years from the year of the first broadcast.
 - ⇒ TV channels can prevent others from rebroadcasting their exclusive news coverage.
 - ⇒ A radio station has the right to control the sale or distribution of its broadcast content.
 - ⇒ These rights give broadcasters the ability to control the way their programming reaches the public.
 - ⇒ These rights ensure broadcasters can benefit financially from their investments in programming.
- **Rights of Producers of Phonograms:** The producers of phonograms, or sound recordings, are given neighbouring rights to protect their investments in creating and reproducing sound recordings. These rights ensure that producers can control how their sound recordings are used and distributed.
 - ⇒ Producers have the exclusive right to reproduce their sound recordings.
 - ⇒ They can distribute copies of their phonograms to the public, either by sale, rental, or lending.
 - ⇒ Producers can control the public performance of their sound recordings in places like clubs, radio stations, or public events.

- ⇒ They have the right to authorize or prohibit the communication of their sound recordings via the internet or cable.
- ⇒ These rights help protect producers from unauthorized duplication or distribution of their recordings.
- ⇒ The protection for producers of phonograms lasts for 60 years from the year of the first publication.
- ⇒ If the recording is never published, the protection lasts for 60 years from the year the recording was fixed.
- ⇒ A music producer has the right to license a recording for use in films or advertisements.
- ⇒ Producers can stop unauthorized use of their recordings on streaming platforms.
- ⇒ These rights ensure that producers are compensated for their efforts in creating and distributing sound recordings.

8. What is the concept of authorship in copyright law and who can be considered an author?

Authorship is the act of creating an original work. In copyright law, the person who creates the work is considered the author. The author is the one who holds the initial rights to the work, meaning they can decide how it is used, reproduced, and distributed. In cases where two or more people work together on a single creation, like co-writing a book or co-composing a song, they are known as joint authors. They both share the rights to the work unless otherwise agreed. According to the Copyright Act of 1957, an author is someone who creates original works, such as literary works, music, art, and more.

- ⇒ For literary works like books, essays, or poems, the author is the person who writes the text.
- ⇒ In musical works, the composer or songwriter who creates the music and melody is considered the author.
- ⇒ In artistic works like paintings or sculptures, the creator (artist) is the author.
- ⇒ For dramatic works like plays or scripts, the playwright or scriptwriter is the author.
- ⇒ In cinematograph films, the director, producer, and screenwriter can be considered authors, but the director is often seen as the primary author.
- ⇒ For sound recordings, the person who records and produces the music or sound is considered the author.

9. How does ownership of copyright work, and what are the key aspects of copyright ownership?

Copyright ownership refers to who holds the legal rights to use, sell, or distribute a work. While the author of a work is usually the first owner of the copyright, ownership can change under certain conditions. Ownership of copyright can last for a long period. For most works like books, music, or paintings, the copyright lasts for the author's lifetime plus 60 years. For works like films or sound recordings, the copyright lasts for 60 years from the date of publication. The Copyright Act of 1957 outlines how ownership is determined and transferred in different situations.

- ⇒ The author of a work is generally the first owner of the copyright. For example, if an author writes a novel, they automatically own the copyright to that novel, including the right to publish, adapt, and distribute it.
- ⇒ If a work is created during employment, the employer is often the first owner of the copyright. This is common in jobs where creative works are made as part of the employee's duties, such as software development or writing articles for a company.
- ⇒ Copyright can also be transferred through assignment or licensing. In an assignment, the original owner gives up all or part of their rights permanently. For instance, a writer might assign their copyright to a publisher, allowing the publisher to control the distribution of the book. Licensing, on the other hand, allows others to use the work without transferring ownership. A photographer, for example, might license a magazine to use their photo while keeping the rights to use it elsewhere.
- ⇒ In commissioned works, like when an artist is hired to create a painting for a client, the commissioner might own the copyright unless the contract states otherwise.
- ⇒ Special cases exist for works created by machines or artificial intelligence. Copyright law doesn't recognize machines as authors, but the human directing the machine or the entity owning the machine may be considered the author.
- ⇒ In some cases, if a work is anonymous or created under a pseudonym, the publisher or the person first publishing the work will initially own the copyright until the true author is identified.

10. What is Assignment in the context of copyright law?

Assignment of copyright is a legal process where the copyright holder transfers ownership of their economic rights to another person or party. The person receiving the rights (called the assignee) now has the right to use the work and control how it is used, based on the rights transferred. The original copyright holder gives up the rights they transferred.

- ⇒ When a copyright holder assigns their rights, they transfer full or partial ownership of their work.
- ⇒ After the assignment, the original copyright holder cannot exercise the assigned rights unless the contract allows it.
- ⇒ The assignment of rights must be done through a written agreement and signed by both parties involved in the transaction.
- ⇒ The assignment can cover all economic rights or just specific rights, like the right to reproduce the work, distribute copies, or perform it in public.
- ⇒ Once the rights are assigned, the new owner (assignee) has the authority to control the work, for example, by selling, reproducing, or licensing it.
- ⇒ The assignment agreement should also define the period (how long the rights will be transferred) and where the rights will apply (whether it's worldwide or limited to a specific region).
- ⇒ The payment for the assignment usually involves a lump sum or royalties, depending on the agreement between the copyright holder and the assignee.
- ⇒ The assignment is irrevocable, meaning it cannot be undone once the rights are transferred unless the contract says otherwise.

11. What is Licensing in the context of copyright law?

Licensing is a less restrictive way to allow others to use a copyrighted work. Unlike assignment, the copyright holder still retains ownership of the work, but they give permission for someone else to use it under specific conditions. The person who receives the license is called the "licensee."

- ⇒ Licensing allows the copyright holder to give permission to another person or company to use their work.
- ⇒ Unlike assignment, licensing doesn't transfer ownership of the copyright. The original copyright holder still owns the work but allows others to use it in agreed-upon ways.
- ⇒ There are two types of licenses: exclusive and non-exclusive. In an exclusive license, only one party can use the work, and the copyright holder cannot allow anyone else to use it. In a non-exclusive license, the copyright holder can give permission to multiple parties to use the work at the same time.
- ⇒ A licensing agreement must be in writing, and it outlines what rights are being licensed, how long the license will last, and the area (territory) where the work can be used.
- ⇒ The license can cover different rights such as reproduction, distribution, performance, or adaptation of the work.
- ⇒ The licensee typically pays the copyright holder in the form of royalties (a percentage of the income earned from using the work) or a fixed fee for the use of the work.
- ⇒ Even though the copyright holder is allowing the licensee to use the work, they often still retain their moral rights, which means they can prevent the work from being changed in ways that damage their reputation or the work's original intent.
- ⇒ Licensing agreements can be revocable or irrevocable, depending on the contract terms. This means the copyright holder may be able to cancel the agreement under certain conditions.

12. What is the difference between Assignment and Licensing in copyright law?

Assignment	Licensing
⇒ Transfers full ownership of the copyright to the assignee.	⇒ Allows the licensee to use the rights, but the copyright holder retains ownership.
⇒ Involves an exclusive transfer of the rights, meaning the assignee becomes the new owner.	⇒ Can be exclusive (only one licensee) or non-exclusive (multiple licensees).
⇒ The transfer can be for the full duration of the copyright or a limited period.	⇒ Can be for a fixed period (e.g., a number of years) or renewable.

⇒ Generally irrevocable once the rights are transferred.	⇒ Can be either revocable or irrevocable depending on the terms of the agreement.
⇒ Typically involves a one-time lump sum or a one-time payment.	⇒ Usually involves ongoing payments such as royalties or a flat fee.
⇒ Can be limited to specific countries or regions, or global.	⇒ Can be limited to specific territories, or could be global, depending on the license.
⇒ The assignee has full control over the assigned rights.	⇒ The copyright holder retains control over the work while allowing specific uses.
⇒ The original copyright holder gives up their control over the assigned rights.	⇒ The original copyright holder retains moral rights, even while granting the license.

13. What is fair use and how does it apply under the Indian Copyright Act, 1957?

Fair use is when someone can use copyrighted work without permission for specific purposes. It is important because it lets people use things like books, music, or artwork for things like teaching, research, or criticism, without needing to ask the creator for permission. However, this rule only works when it doesn't harm the creator's ability to make money from their work. In India, the law calls this "fair dealing," and it's found in Section 52 of the Indian Copyright Act, 1957.

- ⇒ Fair use lets people use copyrighted works for purposes like education, research, and commentary without asking for permission.
- ⇒ In India, it is called "fair dealing" instead of "fair use."
- ⇒ The goal is to balance public access to information with protecting the rights of the person who created the work.
- ⇒ The law allows things like private use, criticism, or news reporting without breaking the copyright rules.
- ⇒ Indian courts decide fair use based on whether the use affects the creator's ability to make money from their work.
- ⇒ A court case showed that playing music in a restaurant for business purposes requires permission because it could hurt the music creator's profits.

14. What are the factors courts consider when determining fair use?

When courts decide if someone can use a copyrighted work fairly, they think about a few things. These things help them figure out whether the use is acceptable or not.

- ⇒ Courts check if the use is for something non-commercial, like research or education. Uses that help people learn or teach are more likely to be allowed.
- ⇒ The type of work being used is important. It's easier to use factual works, like news articles, than creative works, like songs or paintings.
- ⇒ Using a small part of the work is usually fine, but using too much might not be fair, especially if it's not needed.
- ⇒ If using the work harms the creator's ability to sell or make money from it, it's probably not fair use. For example, using a whole book for commercial purposes could hurt the author's sales.

15. What are the limitations of Fair use under the Indian Copy Right 1957?

While fair use (or fair dealing) allows people to use copyrighted works without permission, there are some important limits to keep in mind. These limitations make sure that the use is reasonable and doesn't harm the rights of the creator.

- ⇒ Fair use is allowed only for certain purposes, such as teaching, research, criticism, or news reporting. If the use doesn't fit into these categories, it might not be allowed.
- ⇒ The amount of the copyrighted work you use must be reasonable. For example, you can use a small portion of a book for educational purposes, but using the entire book without permission might not be fair unless it's really necessary for the purpose.
- ⇒ If you're using a copyrighted work for commercial reasons (like making money from it), it is less likely to be considered fair use. The use must not compete with or harm the original work's market value.

- ⇒ The use should be in proportion to the purpose. If you use more than necessary for the given purpose, it could be seen as infringement.
- ⇒ If your use of a work harms the creator's ability to make money, such as by replacing sales or cutting into royalties, then the use might not be considered fair.

16. What is copyright infringement, and what are some common examples?

Copyright infringement happens when someone uses a copyrighted work without the permission of the copyright holder, and the use does not fall under the exceptions allowed by law, such as fair use or fair dealing. Copyright holders are given certain exclusive rights, like the right to reproduce, distribute, or adapt their work. When someone does any of these things without permission or proper license, it is considered infringement.

- ⇒ **Copying a book, song, or artwork without permission:** For example, taking a novel and making a copy of it to sell or distribute without the author's consent is an infringement. The same applies to copying a song or painting and sharing it without the creator's approval.
- ⇒ **Selling or distributing pirated copies of movies, software, or music:** If someone makes copies of movies or software and sells them illegally, they are infringing on the copyright. This includes distributing pirated music or films that were not obtained through authorized channels.
- ⇒ **Downloading or streaming copyrighted material from illegal sources:** If someone downloads or watches movies, music, or shows from websites that share such content illegally, they are engaging in copyright infringement. This applies even to streaming unauthorized videos.
- ⇒ **Performing a copyrighted song or play in public without the right:** If a person or a group performs a song, play, or any other artistic work in public (like in a restaurant or concert) without getting the necessary permission from the copyright holder, this is an infringement. This includes karaoke performances of copyrighted songs.
- ⇒ **Creating new works based on someone else's copyrighted content:** For example, writing a fan fiction based on a book, making a sequel to a movie, or creating an adaptation (like a new version of a song) without the permission of the original creator can be considered infringement if it is based on copyrighted material.

17. What remedies are available for copyright infringement?

If someone's copyright is infringed, there are different ways to handle the situation. The Copyright Act of 1957 gives certain remedies to the copyright holder. These remedies can help stop the infringement, compensate for losses, and even punish those who break the law.

Remedies for copyright infringement:

- ⇒ **Injunctions (Court Orders):** When someone is using a copyrighted work without permission, the copyright holder can ask the court to stop them. An injunction is a legal order from the court that requires the infringer to stop using the work. This can be a temporary order while the case is being decided or a permanent one once the case is over. For example, a court may order a website to stop sharing pirated movies or music.
- ⇒ **Damages:** The copyright holder can claim damages, which is money that is paid as compensation for the loss caused by the infringement. There are two types of damages:
 - * **Actual damages:** This refers to the financial loss the copyright holder suffered because of the infringement. For example, if someone sold unauthorized copies of a book, the author could claim the lost sales as actual damages.
 - * **Statutory damages:** If the actual financial loss is hard to prove, the court may decide on an amount set by law (called statutory damages). This is a fixed amount the infringer has to pay.
- ⇒ **Account of Profits:** In some cases, the court may ask the infringer to hand over the profits they made from using the copyrighted work without permission. The idea behind this remedy is that the infringer should not be allowed to profit from someone else's work. For example, if someone makes and sells pirated copies of a book, the court can order them to give all the money they earned from those sales to the copyright holder.
- ⇒ **Delivery up of Infringing Copies:** If the court finds that a person has copies of a copyrighted work that were made illegally, it can order the infringer to return those copies to the copyright holder. This is done

to stop further illegal distribution. For example, if a company is selling counterfeit DVDs of a movie, the court can order them to return all the fake DVDs to the movie's creator.

- ⇒ **Seizure and Destruction of Infringing Copies:** In some cases, the court can order that infringing copies of a work be seized and destroyed. This means that the counterfeit or pirated copies will be taken away and permanently destroyed, so they can no longer be sold or distributed. For example, if a factory is found making fake products, the court can order that all the fake goods be destroyed.
- ⇒ In cases where the infringement is severe, the law also allows criminal penalties. This applies to activities like large-scale piracy, where there is widespread illegal use of copyrighted works. The criminal punishment for copyright infringement can include:

- * **Imprisonment:** The infringer may be sent to jail for a period of six months to three years, depending on the seriousness of the infringement.
- * **Fines:** The infringer may also be fined a certain amount of money, which can range from ₹50,000 to ₹2,00,000 or more, depending on the case.
- * **Piracy of Films or Sound Recordings:** If the infringement involves pirated movies or sound recordings, the punishment becomes more severe. The person involved can face up to three years in prison and a fine up to ₹3,00,000.

- ⇒ If someone is found guilty of infringement, the copyright holder or their representative can file a complaint with the police or court, which will lead to the prosecution of the infringer. For example, someone selling pirated music CDs could face both jail time and a fine if caught under the criminal provisions of the Copyright Act.
- ⇒ In copyright cases, the defendant can sometimes use defences to avoid liability. Some common defences include:

- * **Fair Use or Fair Dealing:** If the use of the copyrighted work is allowed under exceptions such as fair use or fair dealing (like for research, education, or criticism), it can be a valid defence. For example, using parts of a song for educational purposes may not be considered infringement.
- * **Authorization or License:** If the defendant can prove they had permission from the copyright holder, like having a license to use the work, they will not be found guilty of infringement. For example, a publisher who has a license to print a book is not infringing the copyright.
- * **Independent Creation:** If the defendant can prove that they created the work on their own, without copying from the copyrighted work, they can use this as a defence.
- * **Non-Copyrightable Work:** If the work in question is not protected by copyright, such as facts or ideas that are not original, then there is no infringement. For example, facts or common knowledge cannot be copyrighted, so using them in a report would not be considered an infringement.

18. What are copyright societies and why are they important?

Copyright societies, also known as Collective Management Organizations (CMOs), are organizations that help creators like authors, musicians, and artists protect and manage their works. These societies are essential because they make it easier for creators to earn money from their works, like books, music, or art, without needing to negotiate with each person or business that wants to use their work. Copyright societies act as middlemen between the creators and the users (like radio stations, businesses, or public performers) to ensure creators receive fair payment for their works.

- ⇒ Copyright societies help creators manage their rights and make sure they get paid when their works are used.
- ⇒ Instead of each creator dealing with individual licenses, these societies do it on behalf of all the creators they represent.
- ⇒ They handle tasks like granting licenses, collecting royalties, and distributing payments to creators when their works are used.
- ⇒ Copyright societies also monitor for any unauthorized use of a creator's work and take action if necessary.
- ⇒ These organizations are important because they simplify the process of licensing works, making it easier for businesses and users to use creative content legally.

19. What is the role of copyright societies and what services do they provide?

The role of copyright societies is to make sure creators can manage their rights and get paid for the use of their works. They perform several functions that ensure fair compensation for creators and help protect their rights. Copyright societies work on behalf of creators and take care of the business side of things, so creators can focus on their work without worrying about legal issues or licensing details.

- ⇒ Copyright societies grant licenses to users who want to reproduce, perform, or broadcast copyrighted works. For example, if a restaurant wants to play music, they would get a license from a music copyright society to do so.
- ⇒ They collect royalties from businesses, media outlets, or organizations that use copyrighted works. This could include things like public performances, broadcasts, or music played in stores.
- ⇒ Once royalties are collected, copyright societies distribute the money to the creators based on how often and in what way their works have been used.
- ⇒ They protect creators' rights by monitoring how their works are being used and taking legal action if unauthorized use or infringement happens.
- ⇒ Copyright societies provide valuable information to creators about their rights and guide them on how to protect their works. They may also help with the registration of works and offer legal assistance in case of infringement.
- ⇒ These societies may also help promote the works of their members, increasing awareness and encouraging the use of their works in various media, entertainment, and commercial projects.

20. What is the legal framework for copyright societies in India?

In India, copyright societies are regulated by the Copyright Act, 1957. This law sets the rules for how copyright societies can be formed, how they should operate, and the duties they have toward creators. The Copyright Act provides a legal framework that ensures copyright societies function properly, fairly, and transparently. To work legally, a copyright society in India must be registered with the Copyright Office.

- ⇒ To be recognized legally, a copyright society must apply for registration with the Copyright Office in India. This helps ensure that only legitimate organizations can manage creators' rights.
- ⇒ After registration, copyright societies must operate under the laws set by the Copyright Act, 1957, and must follow certain rules and guidelines for managing creators' works.
- ⇒ A copyright society must have an organized structure with a clear executive body and a group of members who can vote and participate in decision-making.
- ⇒ Membership is voluntary, meaning creators or their representatives (such as publishers or music labels) can choose whether or not to join a particular society.
- ⇒ These societies have to be transparent in their operations, ensuring that creators' rights are protected and that the royalty collection and distribution processes are fair.

21. What are the types of copyright societies in India, and what do they manage?

In India, there are several types of copyright societies, each focusing on different types of creative works. These societies help creators manage their rights in specific areas, such as music, books, films, and visual arts. Each type of society is responsible for looking after a specific category of copyrighted work, ensuring creators in that field receive the appropriate royalties when their works are used.

- ⇒ **Performing Right Societies:** These societies handle the public performance rights of musicians, composers, and lyricists. For example, the Indian Performing Right Society (IPRS) helps musicians and composers get paid when their music is played in public places like radio stations, clubs, or concerts.
- ⇒ **Reproduction Right Societies:** These societies manage the rights of creators when their works (such as books, musical compositions, and art) are reproduced or copied. The Indian Reprographic Rights Organisation (IRRO) is one example, and it focuses on literary works and other written materials.
- ⇒ **Audio-Visual Works Societies:** Some copyright societies specialize in managing the rights of creators involved in audio-visual works like films, TV shows, and online content. Examples of such societies include the Film Federation of India (FFI) and the Association of Motion Picture Producers (AMPP).

- ⇒ Literary Works Societies: These societies focus on managing the rights of authors, playwrights, and other creators of written works. The Indian Copyright Office also helps manage and register literary works.
- ⇒ Visual Arts Societies: These societies protect the rights of visual artists, such as painters and sculptors, and ensure they receive fair compensation for the use of their artwork.

22. What are the powers of the Copyright Board?

The Copyright Board in India is an important body created under the Copyright Act, 1957. It has several powers to help protect the rights of creators and resolve issues related to copyright. It works like a court and can make decisions in disputes about copyright ownership, infringement, licensing, and other related matters. The powers of the Copyright Board are extensive and enable it to effectively enforce copyright laws.

- ⇒ The Copyright Board has the power to decide disputes over who owns a copyrighted work. For example, if two people claim to be the creator or owner of a work, the Board can investigate and decide who has the rightful ownership.
- ⇒ If someone uses a copyrighted work without permission (which is called infringement), the Copyright Board can hear the case and pass a judgment to stop the infringement and award compensation to the rightful owner.
- ⇒ If a person is unhappy with a decision made by the Registrar of Copyrights, they can appeal to the Copyright Board. For instance, if someone's copyright registration is refused, they can file an appeal with the Board to reconsider the decision.
- ⇒ The Board also hears appeals regarding disputes over correcting mistakes in the copyright register or the refusal of recognition of copyright societies.
- ⇒ The Copyright Board has the power to ask the Registrar of Copyrights to correct any errors or omissions in the copyright register. This is important because the register is the official record of all copyrighted works in India, and it must be accurate.
- ⇒ If there are mistakes about who owns a copyrighted work or if there is missing information, the Board can order changes to the record.
- ⇒ The Copyright Board can grant or refuse permission for certain actions that involve copyrighted works. For example, if someone wants to perform a play or a musical composition in public, they must get permission from the copyright owner or through the Board.
- ⇒ The Board also has the authority to decide whether the reproduction of a copyrighted work, like a book or a song, can happen legally.
- ⇒ The Copyright Board plays a role in overseeing how copyright societies (also known as Collective Management Organizations or CMOs) operate. These societies collect and distribute royalties on behalf of copyright holders.
- ⇒ The Board can resolve disputes about how royalties are being distributed and ensure that these societies follow the law and are fair in their operations.
- ⇒ The Board can direct copyright societies to make changes in how they work, ensuring that they operate in a transparent and efficient manner.
- ⇒ In certain cases, the Copyright Board can grant a compulsory license. This means the Board can allow someone to use a copyrighted work even if they don't have permission from the copyright owner.
- ⇒ This usually happens when the work is not being used by the copyright owner, and it is in the public interest for others to use the work. For example, a book that is not available to the public might be licensed to someone else to publish it.

23. What is the role and function of the Copyright Board in India?

The Copyright Board in India is a special body created under the Copyright Act of 1957 to deal with disputes related to copyrights. It helps resolve issues like who owns a copyright, whether copyright has been violated, or the terms of licensing and assignment. The board is also responsible for hearing appeals from decisions made by the Registrar of Copyrights. It works like a court, making decisions and issuing binding orders to ensure that copyright laws are followed.

- ⇒ The Copyright Board is a legal body that resolves disputes related to copyrights.
- ⇒ It handles cases where there are disagreements over who owns a copyrighted work.
- ⇒ It also deals with cases of copyright infringement, such as when someone uses a work without permission.

- ⇒ The board can hear appeals from the Registrar of Copyrights' decisions, like when a copyright registration is refused.
- ⇒ It has the power to enforce its decisions, making sure that the rules and laws regarding copyright are respected.

24. How does a case get filed before the Copyright Board? Can the Copyright Board's decisions be challenged or appealed?

To file a case before the Copyright Board, a party needs to submit an application explaining the dispute, the legal grounds for the claim, and the evidence supporting their case. After the application is submitted, the Board schedules a hearing where both parties present their arguments. The Board then reviews the evidence, makes a decision, and issues an order. If any party disagrees with the decision, they can appeal it in the High Court.

- ⇒ A person must submit a written application to the Copyright Board, explaining their issue.
- ⇒ After the application is received, the Board sets a hearing date for both parties to present their case.
- ⇒ The Board makes a decision based on the facts and laws after hearing the arguments from both sides.
- ⇒ The decision made by the Board is binding, but it can be appealed in the High Court if a party is dissatisfied.
- ⇒ If the order is not followed, the party can seek enforcement through legal measures.

The decisions made by the Copyright Board can be challenged in the High Court. If any party disagrees with the Board's decision, they can file an appeal in the High Court, which has the power to review and possibly change the decision made by the Copyright Board.

- ⇒ Decisions made by the Copyright Board are not final and can be appealed in the High Court.
- ⇒ The High Court can either accept the Board's decision or make changes based on the facts and law.
- ⇒ Even though the Copyright Board has significant powers, the High Court can intervene if needed.
- ⇒ If a party feels that the Board's decision was wrong or unfair, they have the option to seek a review in the High Court.

25. Explain the major copyright issues in the digital environment in detail.

The digital environment has made it easy for people to create, share, and access content like music, videos, books, and software. But at the same time, it has also made it easier to copy and distribute these works without permission. This creates many problems for copyright owners who want to protect their work. Traditional copyright laws were made for physical content, so applying them to the digital world has become challenging.

- ⇒ People often download or stream pirated movies, music, and software without paying or taking permission from the creators.
- ⇒ Peer-to-peer platforms like BitTorrent allow users to share large files, including copyrighted content, making it hard to stop illegal sharing.
- ⇒ Many websites host or link to pirated content, causing big financial losses for the original creators.
- ⇒ On social media and video platforms like YouTube or TikTok, users often add copyrighted songs or clips to their videos without permission.
- ⇒ Some people claim "fair use" or "fair dealing" to justify using copyrighted work for education, parody, or criticism, but it's not always clear what counts as fair use.
- ⇒ Platforms use automated systems to detect and remove copyrighted material, but these systems sometimes make mistakes and remove even fair or legal content.
- ⇒ Questions arise about whether platforms like Facebook or YouTube should be held responsible for copyright violations by their users.
- ⇒ Some users try to break or bypass DRM (Digital Rights Management) systems to copy or share protected content, which is illegal under Indian law.
- ⇒ Social media culture encourages sharing and modifying content, often without realizing the legal impact of doing so.
- ⇒ Many people accept digital contracts (like license agreements for eBooks or software) without fully reading or understanding them, leading to legal confusion.

- ⇒ Blockchain and NFTs are new technologies being explored to secure digital ownership, but they also raise new copyright questions.
- ⇒ In India, the Information Technology Rules, 2021, and the Copyright Amendment Act, 2012, try to manage digital copyright issues, along with global treaties like WIPO.

26. Discuss the challenges of copyright protection for user-generated content in the digital space.

User-generated content (UGC) means content created and shared by users on platforms like YouTube, Instagram, Facebook, and TikTok. This can include videos, memes, music mashups, remixes, and more. While these platforms allow creative expression, they also create problems when users include copyrighted music, video clips, or images without permission. Copyright owners find it hard to control how their work is used.

- ⇒ Many users use parts of movies, songs, or artworks in their own videos, sometimes without knowing it's a copyright violation.
- ⇒ People often claim their use is protected under "fair use" or "fair dealing," but this is hard to judge clearly online.
- ⇒ Platforms use software like YouTube's Content ID to scan and remove infringing content, but these tools are not perfect and may remove even lawful content.
- ⇒ Platforms sometimes remove videos that are legal under fair use, which can harm users' freedom of expression.
- ⇒ There is confusion over whether platforms should be blamed when users post pirated or copyrighted content.
- ⇒ In India, laws like Section 79 of the IT Act protect platforms if they remove infringing content after being informed. But sometimes platforms do not act quickly, which leads to legal disputes.
- ⇒ Users often remix or modify existing works and upload them without understanding the need for permission or licenses.
- ⇒ Some content creators negotiate licensing deals to use copyrighted music or clips, but others skip this step and violate copyright laws.
- ⇒ Even with terms and conditions on platforms, users often overlook the legal boundaries of what they can or cannot upload.

27. What are Technological Protection Measures (TPMs) and Digital Rights Management (DRM)? How do they help in digital copyright enforcement?

To stop the illegal copying and sharing of digital content, creators and companies use special tools called Technological Protection Measures (TPMs) and Digital Rights Management (DRM). These are digital security systems that protect content like movies, music, eBooks, and software. They control how users can access, copy, or share digital works. These systems play a key role in protecting copyrights in the digital world.

- ⇒ DRM systems help restrict how digital content is used, such as allowing a song to play only on certain devices or stopping users from copying a movie.
- ⇒ DRM can control how many times a file is shared or accessed, making it harder for pirates to spread it illegally.
- ⇒ In India, Section 65A of the Copyright Act makes it illegal to break or bypass TPMs to access or share protected content.
- ⇒ While DRM helps stop piracy, it can also make things difficult for honest users who may want to use content for fair purposes, like education or research.
- ⇒ Critics say DRM systems sometimes interfere with user rights, especially when people want to use content in ways that are legally allowed.
- ⇒ For example, a student may not be able to copy parts of a DRM-protected eBook for educational use, even if it's allowed under fair dealing.
- ⇒ Bypassing DRM, even for fair use, can still be considered illegal under current law, which leads to confusion.
- ⇒ Companies try to balance protection and user freedom, but the technology is still not perfect.
- ⇒ There is ongoing debate about whether stricter DRM helps or harms users in the long run.

28. Explain how copyright laws are applied in online transactions and digital contracts.

In today's world, people buy and access digital content like software, music, games, and books through online platforms. These are often governed by digital contracts such as End User License Agreements (EULAs) or Terms of Service. These contracts explain what users can and cannot do with the content they purchase. Copyright laws also apply to these digital deals, creating some important issues.

- ⇒ When users buy digital content, they usually don't own it fully—they just get a license to use it in certain ways.
- ⇒ Many people don't read these license agreements, which can lead to misunderstandings about what they are allowed to do.
- ⇒ Some contracts are very strict and may limit the ability to share, copy, or transfer digital content, even for personal use.
- ⇒ Digital contracts are legally valid in many places if the user agrees to them, but enforcing them can sometimes be hard.
- ⇒ People sometimes face problems when they try to return or resell digital content, which is not allowed in most license agreements.
- ⇒ Piracy and fraud are also big issues in online transactions, as fake websites or hackers may sell unauthorized copies.
- ⇒ Blockchain and NFTs (non-fungible tokens) are being used to create secure digital ownership records, helping to prove who owns a digital file.
- ⇒ These technologies can make online copyright transactions more transparent and harder to fake.
- ⇒ NFT ownership does not always mean copyright ownership, which confuses many buyers.

29. Donoghue vs. Allied Newspapers – Easy Explanation

- ⇒ This is an important case related to copyright law. In this case, the court decided that just having a smart or creative idea is not enough to get copyright protection. If one person shares an idea for a story, play, or picture with someone else, and that other person writes or creates something using that idea, the person who actually creates the final work is the one who owns the copyright.
- ⇒ The person who only gave the idea does not get any rights over the final product.
- ⇒ This case makes it clear that copyright is not given for ideas alone — it is only given when the idea is expressed in a real, tangible form like writing, drawing, or music.
- ⇒ For example, if one person gives some ideas to write a book, and another person writes the whole book using those ideas, the writer (also called a ghost-writer) will be the legal owner of the copyright in that book.

2M PYQ QUESTIONS

1. What is an artistic work?

"Artistic work" means, - a painting, a sculpture, a drawing (including a diagram, map, chart or plan), an engraving or a photograph, whether or not any such work possesses artistic quality; a [work of architecture]; and any other work of artistic craftsmanship; as provided under Section 2(c) of the Copyright Act.

2. Explain the term inventive step?

An invention, so far as claimed in a claim, involves an inventive step if it is not obvious to a person skilled in the art, having regard to any matter which forms part of the prior art base.

3. Explain government work?

Intellectual property rights (IPR) are the rights given to persons over the creations of their minds: inventions, literary and artistic works, and symbols, names and images used in commerce.

4. What is service under the trade mark act 1999?

The Trade and Merchandise Marks Act only allows for registration of trademarks used in connection with goods. Service marks or trademarks used in relation to services alone, such as names of travel agencies, finance companies, airlines etc. are not registerable under the Act and are not protected.

5. Define the term "Collective mark"?

Collective mark is a mark used only by the members of an association, cooperative or other collective organization. A collective organization may include an association, union, cooperative, fraternal society or other organized groups.

6. What is Patent?

A patent for an invention is granted by government to the inventor, giving the inventor the right to stop others, for a limited period, from making, using or selling the invention without their permission.

7. What is Trademark?

A trademark is a sign capable of distinguishing the goods or services of one enterprise from those of other enterprises. Trademarks are protected by intellectual property rights.

8. Who is a Patentee?

A patentee is a person who is entered in the register of patents as the grantee or proprietor of a patent for the time being.

9. What is the term of Copy right of a musical work?

Copyright in literary and musical work will exist for sixty years from the date of its publication or for the lifetime of the author and sixty years from the date of his death.

10. Who is the author in relation to sound recording?

Sound recordings are generally created by performers and/or producers.

11. What is Reprography?

The reproduction and duplication of documents, written materials, drawings, designs, etc., by any process making use of light rays or photographic means, including offset printing, microfilming, photography, office duplicating, and the like.

12. State the work in which Copyright's subsists?

Copyright subsists throughout India in the following classes of works: Original literary, dramatic, musical and artistic works; Cinematograph films; and. Sound recordings.

13. Who is a Performer?

Section 2(qq) of the copyright act defines that a performer may include an actor, dancer, musician, acrobat, singer, snake charmer, conjurer juggler, a person delivering a lecture or any other person who puts up a performance.

14. Explain the term package under the trade mark act, 1999?

The Act defines package to include any case, box, container, vessel, casket, bottle, wrapper, label, brand, ticket, frame, capsule, cap, lid, stopper and cork.

15. What is Patent of addition?

Patent of Addition is an application made for a patent undergoing improvement or modification of the invention described or disclosed in the main invention for which the patentee has already applied for or has obtained a patent

16. Who is a Person interested?

According to it "person interested" in relation to any immovable property includes all persons claiming or entitled to claim an interest in the compensation payable on account of acquisition of that property.

17. What is the term of copyright of a literary work?

"Copyright" literally means the right to copy. Copyright is a form of protection given to the authors of "original works of authorship," including literary, dramatic, musical, artistic, and certain other works. This protection is available "automatically" to both published and unpublished works.

18. Explain the term engravings?

Engraving was a historically important method of producing images on paper in artistic printmaking, in mapmaking, and also for commercial reproductions and illustrations for books and magazines.

19. Who is the registered proprietor?

According to chapter I, section 2(V)(v), a registered proprietor is the person for the time being entered in the register as the trademarks' etiquette.

20. Explain the term transmission under the trade mark act, 1999?

According to the Act, transmission means the transfer of a trademark by operation of law or devolution on the personal representative of a deceased person, which is not an assignment.

21. Define invention?

An invention is a new solution to a technical problem and can be protected through patents.

22. What is the meaning of patented article and patented process?

A patent is an exclusive right granted for an invention, which is a product or a process that provides, in general, a new way of doing something, or offers a new technical solution to a problem.

23. Explain the term design?

Design right is a territorial statutory right (enforceable only upon registration of said design), which allows the proprietor to prevent others from producing, importing, selling or distributing products having an identical appearance or a fraudulent or obvious imitation.

24. Explain Indian work?

In case of original literary, dramatic, musical, and artistic works the time period of copyright in India is 60 years in addition to the author's lifespan. Where there are multiple authors, the term is 60 years post the death of the last author.

25. Explain the term goods in Trademarks marks act, 1999?

Strong trademarks are typically creative or unique, setting you apart from your competitors. These trademarks include fanciful, arbitrary, or suggestive trademarks. Fanciful trademarks are invented words. They only have meaning in relation to their goods or services.

26. Who is composer?

According to the section 2(d)(ii) the author in relation to the musical work is a "Composer". Whereas according to section 2 (ffa) "Composer", in relation to a musical work, means the person who composes the music regardless of whether he records it in any form of graphical notation.

27. Who can apply for registration of a design?

A person, who has applied for protection of a Design, in any of the convention country, may file an application for registration of the same design in India, within six months from the date of priority. This period of six months is not extendable.

28. Who can apply for registration of a design?

A person, who has applied for protection of a Design, in any of the convention country, may file an application for registration of the same design in India, within six months from the date of priority. This period of six months is not extendable.

29. Explain the term indication?

Geographical indications (GIs) are intellectual property (IP) rights that serve to identify a product that originates from a specific geographical area and that has a quality, reputation, or other characteristics that are essentially attributable to its geographical origin.

30. Explain the term article?

The Convention contains 30 Articles dealing with various aspects and types of industrial property including patents, trademarks, service marks, utility models, industrial designs, geographical indications, and the repression of unfair competition

SITUATIONAL QUESTIONS

1. Government of India starts manufacturing a drug which is patented by PACTO Pharma Ltd. The drug is distributed to government medical colleges and hospitals. PACTO Pharma Ltd. files a suit of infringement against the government.

→ **Will PACTO Pharma Ltd. succeed in the suit?**

It is unlikely that PACTO Pharma will win the case if the government is using the drug for public purposes like healthcare and medical services. This is because the Patents Act has special rules that allow the government to use a patented invention under certain conditions, without it being treated as a violation.

→ **Which provisions of the Patents Act will be applicable in this scenario?**

The following provisions of the Patents Act, 1970, may apply in this case:

- * Section 47: This section says that if the government uses a patented invention for its own purposes, such as for research or health services, it is not considered an infringement.
- * Section 100: This allows the government to use any patented invention or give permission to someone else to use it for government services.
- * Sections 84 to 92: These sections talk about **compulsory licensing**. This means if the drug is needed for public health or emergency reasons, the government can allow others to make the patented drug even without the consent of the patent owner, to protect public interest.

2. Mr 'T' invents a topography of integrated circuits and applies for a patent for the same.

→ **Will Mr. 'T' succeed in getting a patent?**

No, Mr. T will not get a patent for his invention. In India, topography or layout designs of integrated circuits are not protected under patent law.

→ **What is the provision of law regarding the invention of topography of integrated circuits?**

Such designs are protected under a separate law called the Semiconductor Integrated Circuits Layout-Design Act, 2000. According to this Act, if the layout design is new and original, and has not been used commercially before, Mr. T can register it and get protection. Once registered, he gets exclusive rights over it for 10 years.

3. Being inspired by the Web series 'Maharani', Shashi Khanna – a fiction author wrote a biography of Smt. Rabri Devi named 'RANIDEVI' without her consent. Smt. Rabri Devi sought an injunction on the sale of the said book. But the controversy led to heavy public demand of the book. Mohan Trivedi made a pirated copy of this book and began to sell it all over India.

→ **What remedies would have been available to the author, if there was no injunction against his book?**

If there was no injunction against the book, the author (Shashi Khanna) could take legal action against Mohan Trivedi for making pirated copies. The remedies available are:

- * **Civil Remedy:** He can ask for compensation for financial loss.
- * **Criminal Remedy:** He can file a police complaint. Piracy is a crime under the Copyright Act.
- * **Administrative Remedy:** He can approach the Copyright Board for help.

→ **What are the remedies available to Smt. Rabri Devi?**

Remedies for Smt. Rabri Devi are:

- * **Right to Privacy:** If the book includes personal or private information without her permission, she can take legal action.
- * **Defamation:** If the book harms her image or reputation, she can file a case.
- * **Injunction:** She can ask the court to stop the book from being sold further.

4. In 2003, Famous Camera Ltd. invents and adopts the trade mark 'THADAX' in relation to cameras and obtains registration of the same THADAX. THADAX becomes a very popular brand in most Asian Countries in a short while. In 2005, Super Cakes Private Ltd. launches its cakes under the trade name THADAX.

→ **Can Famous Cameras Ltd. take action against Super Cakes Ltd for restraining Super Cakes Ltd from using the trade mark THADAX?**

Yes, Famous Camera Ltd. can take action against Super Cakes Ltd. They can claim that using the same name causes confusion and damages their brand, even if the products are different (cameras and cakes).

→ **Can Famous Camera Ltd. Succeed in the action against Super Cakes Ltd., if the trade mark was popular only in Mumbai?**

Yes, even if THADAX is only popular in Mumbai, the company can still take action. Indian trademark law protects well-known marks even if they are famous only in a specific area. They can use the concept of passing off and reputation in a local market to argue their case.

5. Venugopal is a manufacturer of tennis racquets and wants to use the name "Rocket" as his trademark. He applies for a trademark registration to the Registrar of Trademarks.

→ **Will Venugopal succeed to register the name "Rocket" as a trademark for his goods?**

Venugopal may succeed if the name "Rocket" is not already registered for similar products. The name must be unique, not too common or descriptive, and should not create confusion with existing trademarks.

→ **State and explain the provisions of the law involved.**

Venugopal may succeed if the name "Rocket" is not already registered for similar products. The name must be unique, not too common or descriptive, and should not create confusion with existing trademarks. The following provisions of the Trademarks Act, 1999 apply:

- * **Section 9:** Trademark should not be too common or not descriptive.
- * **Section 11:** Trademark should not be similar to any already registered one.
- * **Section 18:** Explains how to apply for trademark registration.

If the name “Rocket” meets all these conditions and no one opposes it, Venugopal can get the registration.

6. Kamyra Drugs make a herbal tea for cold and cough treatment using traditionally well-known actives.

→ Will they be able to get a patent for the herbal tea in India?

Kamyra Drugs may not get a patent because they are using traditional ingredients. Indian patent law does not allow patents on traditional knowledge unless there is something new or inventive in how the ingredients are used.

→ What are the steps for filing a patent application in India?

Steps for filing a patent in India:

- * **Patent Search** – Check if the idea is new.
- * **Draft the Patent** – Write a full description with claims.
- * **File the Application** – Submit it to the Patent Office.
- * **Publication** – Application is published after 18 months.
- * **Request for Examination** – Ask for detailed review.
- * **Reply to Objections** – If the Patent Office raises issues, respond to them.
- * **Grant of Patent** – If everything is in order, patent is granted.

7. A film producer makes a cinematographic adaptation of a book without consent of the author.

→ Is he permitted to do so under the Copyright Act, 1957?

No, he is not permitted. Adapting a book into a film without the author’s permission is not allowed under the Copyright Act. The author’s approval is needed because it is a derivative work.

→ What is copyright infringement?

Copyright infringement means using someone’s copyrighted work (like books, songs, movies) without permission. This includes making copies, selling, or making changes (like a film) without the owner’s consent.

8. Scientist 'A' working in B.A.R.C. and involved in atomic energy research, discovers a scientific principle. His colleague, Scientist 'B' uses the principle and invents a novel, inventive, and useful working device based on the principles.

→ Will Scientist 'A' be granted a Patent for his discovery? Why?

No, Scientist 'A' will not get a patent. Under Section 4 of the Patents Act, 1970, inventions related to atomic energy cannot be patented in India. The government controls such inventions for national safety reasons.

→ Will Scientist 'B' be granted a Patent for his invention? Why?

No, Scientist 'B' will also not get a patent. His invention is also based on atomic energy, which cannot be patented under Indian law.

→ What will be your answer to b) above, if the invention is not related to atomic energy? Why?

If the invention is not related to atomic energy and is new and useful, then Scientist 'B' can get a patent for it.

9. Dr. Singh has written a book on Intellectual Property Law. The book has been published by Western Law House.

→ Who is the author of the work?

Dr. Singh is the author of the book.

→ A journalist uses extracts of the book in the review of the book published in a magazine. Will this amount to infringement? Why?

No, this is not an infringement. Under Section 52 of the Copyright Act, using small parts of a book for review is allowed.

→ A student extensively quotes from Dr. Singh's book in his law examination. Will this amount to infringement? Why?

No, this is not an infringement. Section 52 allows using extracts in exams.

→ Shyam makes 10 photocopies of the book and distributes them amongst his friends. Will this amount to infringement? Why?

Yes, this is infringement. Making and sharing photocopies without permission is not allowed under Section 51 of the Copyright Act.

10. Anil, a research scientist, discovers a new phenomenon in physics. Using principles underlying this new discovery, Anil and Amit invent a product having substantial commercial potential. Anil and Amit have come to you for advice.

→ **Would you advise Anil to obtain a patent in respect of his discovery? Give reasons either way.**

No, Anil cannot get a patent just for his discovery. Under Section 3(c) of the Patents Act, a discovery of a scientific principle is not considered an invention.

→ **Would Anil and Amit together, be eligible for a patent? If no, who amongst them would have a better right?**

Yes, Anil and Amit can apply together for a patent for the product they invented using the discovery.

→ **The inventor(s) would like to file a Complete Specification, but their claims are not yet ready. What advice would you give them under the circumstances?**

They can file a provisional specification first. Later, within 12 months, they must file the complete specification.

→ **Further, the inventor(s) would like to discuss the discovery and the product at a scientific conference. What advice would you give them?**

They can talk about the discovery, as it is not patentable. But they should not mention the product unless they have filed at least a provisional specification.

11. Dhoni has been granted a patent, by the Indian Patents Office on 31st December, 2007

→ **For how long will Dhoni have the patent over his invention?**

Dhoni will have the patent for 20 years from the date of filing the application, as per Section 53(1) of the Patents Act.

→ **If Ganguly wants to challenge the patent, in which Court has he to file a suit?**

Ganguly can file a case in the District Court or in some cases, in the High Court.

→ **Can Dhoni file an action for infringement against manufacturer who is making the invention in Nepal? Why?**

No, Dhoni cannot file an infringement case in Nepal unless the patent is also registered there.

→ **Can Dhoni get a patent in England in respect of the same invention, if he applies in 2008? Why?**

Yes, he can apply if no one else has already patented a similar invention in England

→ **If Dhoni had initially applied under the PCT then, would he have gained any advantage?**

Yes, applying under the PCT (Patent Cooperation Treaty) helps to fix a priority date in many countries at once.

12. A detective agency wants to register the trademark "I Section I Section I" for its firm. The Controller General of Patents, Designs and Trademarks has refused to grant trademark on the plea that it sounds similar to the trademark ICICI.

→ **Is the stand of the Controller correct?**

Yes, the Controller is right. If a trademark causes confusion with an existing well-known mark like ICICI, it cannot be registered.

→ **Can there be any other ground of refusal?**

Yes. Under Section 11, if the new mark is similar to an existing well-known trademark or may confuse people, it can also be refused.

→ **What are the remedies available against the refusal?**

The applicant can try to get the consent of the owner of the earlier trademark or claim honest and concurrent use under Section 12.

13. Sanchit and Sagar filed patent application with provisional specification on the same date for the same invention. After that, Sanchit filed a complete specification much earlier to Sagar, both filed within the allowed period. Examine the status of the patent applications filed by both, Sanchit, and Sagar.

→ **If Sanchit adopted the idea from Sagar dishonestly.**

If Sanchit copied the idea from Sagar, it is unfair. Sagar can file a case for declaration, injunction, damages, and profits.

→ **Both Sanchit and Sagar are honest independent inventors conducting their own separate experiments.**

Since Sanchit filed the complete specification first, he will get the patent. If Sagar developed a different process, he can patent that separately, but only with Sanchit's permission.

14. 'A' launches a new hand bag in the market under the brand name "Orange". The unique feature of this bag is it is made of orange peels with a very innovative technology and is in shades of orange. 'A' also wants to get the colour Orange as a trade mark.

→ Identify the IPR involved in the given case.

The IPR involved is Trademark. The brand name "Orange" and the specific orange color can be protected as trademarks.

→ Will 'A' be entitled to use Orange as a trade mark?

Yes, if 'A' can prove that the color orange is strongly linked with the brand in the minds of customers and is not just decorative or functional, then it can be registered as a trademark.

15. Venugopal is a Manufacturer of tennis racquets and wants to use the name "Rocket" as his trademark. He applies for a trademark registration to the registrar of trademarks.

→ Will Venugopal succeed to register the name "Rocket" as a trademark for his goods?

Mr. Venugopal will not succeed in registering the name "Rocket" as a trademark for his goods.

→ State and explain the provisions of the law involved.

Section 9(3) lays down the grounds for refusal of trademark registration. Registration can be refused if the trademark:

- a) consists exclusively of the shape of goods resulting from the nature of the goods themselves, or
- b) consists of the shape of goods necessary to obtain a technical result, or
- c) consists of the shape that gives substantial value to the goods.

16. A film producer makes a cinematographic adaptation of a book without consent of the author.

→ Is he permitted to do so under the Copyright Act, 1957?

No, a film producer without obtaining the consent of the author, who is the first owner of copyright under Section 17, cannot do so under the Copyright Act, 1957. Copyright subsists in an original literary work (i.e. book) written by the author.

→ What is copyright infringement?

In this case, the reproduction of a literary work in the form of a cinematographic adaptation (i.e. conversion of a literary work into a dramatic work) without the consent of the first owner of the copyright (i.e. author) amounts to copyright infringement.

17. Mr. X bequeaths to Mr. Y a manuscript of a literary work by testamentary disposition.

→ What are rights of "Y" if "X" dies before publishing the literary work?

In such a case, Y has copyright in the manuscript by testamentary disposition, unless the contrary intention is indicated in the testator's will.

→ Explain the provision of law involved in the above case.

Section 20 of the Copyright Act states that where under a bequest a person is entitled (i.e. Y in this case) to the manuscript of a literary work, and the work was not published before the death of the testator (i.e. X in this case), the bequest shall, unless the contrary intention is indicated in the testator's will, be construed as if the testator was the owner of the copyright immediately before death, and thus could bequeath it to any person.

18. A teacher in the course of instruction reproduces the literary works of an Indian author for the benefit of student without the consent of the author.

→ Has the teacher committed any offences under the Copyrights Act, 1957 and state the penalty if any?

No, the teacher has not committed any infringement of copyright under the Copyright Act, 1957.

→ State and explain the provision of law.

Under Section 52, fair use or fair dealing with any literary work for educational or teaching purposes, including research and criticism, shall not amount to infringement of copyright.

19. Mr. X obtains an admixture of the properties of cement and sand, discovers that the substance so obtained is very effective for construction purposes. Mr X desires to apply for a patent for the same.

→ Will Mr X succeed to get a patent?

No, Mr. X will not succeed in getting a patent in this case.

→ State and explain the mandatory requirement to be considered for registration as patent.

Section 3(e) of the Patents Act, 1970 states that a substance obtained by a mere admixture resulting only in the aggregation of the properties of the components thereof, or a process for producing such

substance, is not patentable. A mandatory condition for getting a patent is that the product must be "new" and "useful". Novelty is the test of invention.

20. A dancer enchants the audience with dance movements. Mr. X makes a visual recording of the dance movements with the permission of the dancer and exhibits the same to his friends on payment of charges.

→ **State the technical terms which would define the dancer and the dance movements.**

The technical term which defines the dancer is "performer", which includes a dancer, as per Section 2(qq). The dancer is also an "author" in relation to an artistic work other than a photograph, as per Section 2(d)(iii) of the Copyright Act, 1957.

→ **Has Mr. X committed any offence under the Copyright Act, 1957, if yes, state the penalty.**

Yes, Mr. X has committed an offence of infringement of copyright. He shall be punished with imprisonment for a term not less than 6 months, which may extend to 3 years, and with fine not less than ₹50,000, which may extend to ₹2,00,000.

21. Mr. Ram wants to use the mark "Bata" as his trademark for his soaps and applies for registration of the mark "Bata", to the Registrar of Trade Marks.

→ **Will Mr. Ram succeed to get the mark registered?**

No, Mr. Ram cannot get the mark "Bata" registered because it is devoid of distinctive character. "Bata" is already a famous registered trademark and therefore is an absolute ground for refusal of registration.

→ **State and explain the doctrine involved.**

Doctrine of Absolute Prohibition applies here. A trademark that is identical or similar to a well-known existing mark is refused registration under this doctrine.

22. On a visit to the African Tropical Forests Mr. Z discovered that the Negeri Tribe hunts with very effective spears. Mr. Z imitates the spear & applies for patent.

→ **Will Mr. Z, succeed to get a patent?**

No, Mr. Z cannot get a patent for the spear.

→ **State and explain the provision of law involved.**

Under Section 2(1)(j) of the Patents Act, 1970, a patent may be granted only to an invention of a product or process which is "new" and "useful". Novelty is the test of invention. Since Mr. Z merely imitated an existing traditional product, it lacks novelty. Also, under Section 3(b), such inventions are not patentable.